

**DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF INVESTIGATION**



REQUEST FOR PROPOSAL

RFP 15F06726R0000146

Ammunition - 9mm Luger

Service, Training, and Frangible

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PART I – THE SCHEDULE

SECTION A

This Section is intentionally left blank.

[End of Section]

SECTION B – SUPPLIES OR SERVICES AND PRICES/COST

B.1 DESCRIPTION OF SUPPLIES

Under the policies and procedures prescribed in FAR Part 12, Acquisition of Commercial Products and Commercial Services, in conjunction with Part 15, Contracting by Negotiations, the Contractor(s) shall provide 9mm Luger caliber ammunition.

The FBI is seeking contracts for the following types of 9mm Luger caliber ammunition: service, training, and frangible ammunition.

B.2 TYPE OF CONTRACT

The FBI intends to make up to three (3) contract awards. The contract(s) will be unrestricted and structured as Fixed Price, Indefinite-Delivery Indefinite-Quantity (IDIQ), type contracts for one (1) base year, four (4) possible one-year option periods, and a potential 6-month extension in accordance with FAR 52.217-9. The Government intends to have 9mm ammunition contract(s) in place covering each of the three (3) categories (i.e., service, training, and frangible). This may be accomplished with three (3) separate contracts. In the event an Offeror is awarded contracts in more than one (1) category of ammunition, the Government reserves the right to consolidate those into one (1) contract.

B.3 CONTRACT AND ORDER LIMITATIONS

Delivery shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies specified in the Schedule up to and including the quantities designated in the Schedule as the “maximum.” The Government shall order at least the quantity of supplies or services designated as the “minimum,” hereby established as **\$1,000.00 per IDIQ**, over the life of the contract established. This minimum shall be set for each ammunition category.

The Government shall not be required to purchase from the Contractor any additional quantities after the initial guaranteed minimum. The obligation of funds and specific quantities will be ordered through individual delivery orders or the Government Purchase Card (GPC) Program. The estimated cost is \$90,000,000; North American Industry Classification System (NAICS), 332992, Small Arms Manufacturing Ammunition with a small business size standard of 1,300 employees; Unrestricted, Period of Performance; twelve (12) month base period with four (4) possible one-year options and a potential 6-month extension (see FAR 52.217-9).

The Government’s intent is to establish multiple IDIQ contracts with one awardee per category under this solicitation. Maximum threshold for each category is expected to be as follows:

Ammunition Category	Maximum Threshold
Service	\$ 35,000,000
Training	\$ 45,000,000
Frangible	\$ 10,000,000

The Government reserves the right to increase the value of this contract(s) by 15% of the accepted awarded value with in-scope modifications.

B.4 PRICING/FIVE (5) YEAR ESTIMATED CONTRACT COST

Price proposals shall be submitted using the Pricing Matrix provided in this solicitation. Refer to Section J, Attachment 1 – Pricing Matrix.

[End of Section]

SECTION C - STATEMENT OF WORK

C.1 GENERAL DESCRIPTION

In support of law enforcement operations and training activities, the FBI is seeking contracts for the following three (3) categories of 9mm Luger caliber ammunition: service, training, and frangible. Those categories can be defined as follows:

Service: Ammunition intended to be carried and fired in defense of self and others.

Training: Ammunition intended to be fired during firearms training.

Frangible: Ammunition intended to be fired during firearms training utilizing steel targets at close distances.

It is the FBI's intent to make this contract available to law enforcement agencies within the Department of Justice (DOJ).

C.2 SCOPE

C.2.1 This solicitation documents the FBI's requirements for three (3) categories of 9mm Luger caliber ammunition: service, training, and frangible. All ammunition must be compatible with the 9mm weapons issued or approved for duty use by the FBI.

C.2.2 The test protocol and evaluation process outlined in Section M is specific to this solicitation and should not be considered the test standard for other FBI ammunition requirements.

C.2.3 For the life of the contract(s), the ammunition shall meet all requirements specified within the Statement of Work and the evaluation standards documented in Section M.

C.3 GENERAL REQUIREMENTS

C.3.1 All ammunition shall be 9mm Luger or 9mm Luger+P.¹

Note: Hereinafter "9mm Luger" and "9mm Luger+P" will be abbreviated to "9mm." Offerors are reminded that the FBI will consider ammunition submissions meeting either specification.

C.3.2 Ammunition shall conform to all dimensional specifications and recommended performance standards (Pressure and Velocity) by the Sporting Arms and Ammunition Manufacturers Institute (SAAMI).² The Government reserves the right to require additional and/or more stringent specifications than those set forth by the SAAMI.

C.3.3 Ammunition shall consist of production ammunition manufactured by the Offeror. The Offeror may purchase components for the cartridge from other sources, but the Offeror shall be the primary manufacturer of the ammunition.

C.3.4 Ammunition shall be made in America. Components and materials may be sourced from outside of the United States, but the assembly and production shall be made in America.

C.3.5 No component of the ammunition shall have been previously used. Reloaded ammunition is

¹ SAAMI specifies distinct velocity and pressure performance standards for 9mm Luger and 9mm Luger +P. Either are acceptable to the Government, provided the ammunition meets all other Statement of Work requirements.

² Published by SAAMI, 11 Mile Hill Road, Newtown, Connecticut 06470. Publication: ANSI/SAAMI 299.3-2022.

prohibited.

C.3.6 Offeror shall be capable of manufacturing the entire quantity of ammunition at the Offeror's manufacturing facility or facilities within the required delivery schedule (see Section F.2). The Offeror must not use or employ subcontractors without the prior written approval of the FBI.

C.3.7 Contractor shall provide annual proof of liability insurance for a minimum amount of **\$5,000,000** (U.S. Dollars).

C.3.8 Contractor shall be capable of conducting continuous in-house quality control testing to ensure chamber pressures, velocities, and terminal performance (where applicable) are maintained in accordance with the recommended specifications of the SAAMI and the requirements of this solicitation.

C.3.9 Contractor shall possess the capability of conducting in-house failure analysis on any cartridge or component returned by the FBI, which does not function as designed or that exhibits signs of an obvious anomaly. The findings of the failure analysis shall be reported to the FBI in writing, within ten (10) business days. In addition to the identified cause of the failure, the Contractor shall note any remedial action taken to prevent the failure in the future.

C.3.10 Contractor shall make no alterations to the ammunition or components³ without prior notification, and written approval by the CO.

C.4 CARTRIDGE SPECIFICATIONS

C.4.1 Projectile Weight

C.4.1.1 Ammunition shall meet the following requirements for projectile weight:⁴

Service and Training: The unfired projectile shall weigh between **124** and **150** grains.

Frangible: The unfired projectile shall weigh between **100** and **150** grains.

C.4.2 Projectile Design

C.4.2.1 Across all ammunition categories, the projectile design shall not require that a clean barrel be seasoned by the firing of fouling shots to achieve optimal accuracy.

C.4.2.2 If any surface coating is applied to the projectile, it shall not wear off or transfer under normal handling and/or storage (e.g., on hands, inside a pocket, etc.).

C.4.2.3 The projectiles shall not leave remnants of polymers, copper jackets, or other metals in the weapon when fired, which interfere with the cycle of operation.

C.4.2.4 Projectiles shall meet the following design requirements specific to each category:

Service - The service projectile shall be designed to expand. Projectiles shall be a hollow point design. Filled tips (e.g., polymer, elastomer, etc.) are permitted. The projectile shall not have exposed lead at the base of the bullet. The FBI is

³ Ammunition components include, but are not limited to, powder, primer, cartridge case, and the projectile.

⁴ The established SAAMI tolerances for projectile weight apply, "To 100 grains: Nominal Weight +/- 2%. 100 grains & over: Nominal Weight +/- 1.5%."

seeking service projectiles that reliably and consistently penetrate and expand when striking validated ballistic gelatin. Projectiles should expand to the greatest diameter possible while maintaining penetration between 12" to 18" throughout the FBI Protocol test, with no shots penetrating less than 12". Projectiles should retain as high a percentage of weight as possible and achieve consistent depths of penetration across the FBI Protocol test.

Training - The training projectile shall be a full metal jacket (FMJ), total metal jacket (TMJ), or similar design. It may have a rounded or flattened nose profile. A hollow point design is expressly forbidden. The projectile shall not be of a frangible design. No exposed lead is permitted at the base of the bullet.

Frangible – The frangible projectile shall be comprised of compressed metal and/or polymers. The projectile shall be lead-free.⁵ A hollow point design is expressly forbidden.

C.4.2.5 **Frangible** projectiles shall not cause excessive damage to steel targets⁶ when shot from distances of ten (10) feet or further away. Projectiles shall break apart upon impact with steel targets.⁷

C.4.2.6 **Frangible** projectiles shall not deform, crack, or separate from the cartridge case while subjected to the cycle of operations. This includes deformation as a result of heat in the chamber / barrel.

C.4.3 **Projectile Accuracy Requirements**

C.4.3.1 **Service and Training:** When fired from a test barrel,⁸ the average group size⁹ of two (2) 10-shot groups shall not exceed four (4) inches at 50 meters.

C.4.3.2 **Frangible:** When fired from a test barrel, the average group size of two (2) 10-shot groups shall not exceed four (4) inches at 25 meters.

C.4.3.3 **Service and Training:** When fired from a Glock 19M Gen5 MOS barrel¹⁰, the average group size of six (6) 5-shot groups shall not exceed four (4) inches at 50 meters.

C.4.3.4 **Frangible:** When fired from a Glock 19M Gen5 MOS barrel, the average group size of six (6) 5-shot groups shall not exceed four (4) inches at 25 meters.

C.4.4 **Cartridge Case**

C.4.4.1 The cartridge case shall bear the manufacturer's name (abbreviations are acceptable) and the

⁵ Trace amounts of lead totaling less than 1% are acceptable.

⁶ Abrasion resistant steel targets with a Brinell hardness of 500 HBW (or greater) and a thickness of 3/8" or greater.

⁷ The FBI desires frangible projectiles that break into pieces no greater than 5 grains in weight.

⁸ Throughout this solicitation, unless otherwise stated, references to a "test barrel" will refer to a 4" heavy barrel (1.25" diameter) with a SAAMI 9mm Luger chamber and a 1:10 twist rate.

⁹ Throughout this solicitation, group size is determined by measuring the extreme spread; specifically, the distance between the two most distant shots, measured center of projectile to center of projectile.

¹⁰ See Section M for accuracy protocol when fired from a Glock barrel.

caliber. The year of manufacture or a code to indicate the year of manufacture is required.¹¹

- C.4.4.2 The cartridge case shall not rupture or split when fired from DOJ-fielded firearms, absent circumstances beyond the Contractor's control, such as those caused by a defective weapon.
- C.4.4.3 The cartridge case head shall be of sufficient hardness to prevent the incidence of a blown primer when fired in DOJ-fielded firearms.
- C.4.4.4 The cartridge cases for **Service** ammunition shall be brass (nickel-plated, or similar, is acceptable). **Training** and **Frangible** cartridge cases shall be brass and may not be nickel-plated.
- C.4.4.5 For **Service** ammunition, the cartridge case mouth and primer shall be sealed to prevent the entrance of moisture. Case mouth and/or primer sealants are permitted but not required for **Training** and **Frangible** ammunition. For any/all ammunition, if sealants are present, it shall not interfere with the cycle of operation in the weapon.
- C.4.4.6 The bullet pull force will be sufficient so as not to dislodge the projectile from its seated position in a previously un-chambered cartridge during recoil (i.e., when contained in the magazine) or when feeding/chambering in firearms.

C.4.5 **Primer**

- C.4.5.1 Primers shall be non-corrosive.
- C.4.5.2 Primers shall remain securely in place in the primer pocket during the entire cycle of operation.
- C.4.5.3 **Training** and **Frangible** shall have lead-free primers. The government is not specifying a leaded or lead-free requirement for **Service**, provided the ammunition meets the functional reliability and warranty requirements outlined in this solicitation.

C.4.6 **Pressure**

- C.4.6.1 Ammunition shall conform to SAAMI's pressure performance standards for 9mm Luger or 9mm Luger +P.¹²
- C.4.6.2 At ambient temperature, Maximum Probable Sample Mean (MPSM) chamber pressures shall not exceed 41,500 pounds per square inch (psi). No single shot shall exceed 46,800 psi (90% of the minimum proof loading of 52,000 psi).
- C.4.6.3 Ammunition shall be safe to fire in firearms at temperatures between -40°F and +140°F. When fired at temperature extremes (-40°F and +140°F), no single shot shall exceed 46,800 psi.

C.4.7 **Propellant**

- C.4.7.1 Propellant shall be clean burning and not leave substantial fouling or powder residue in the

¹¹ Headstamp markings are required for all ammunition procured under these contracts (post award). Sample ammunition provided for evaluations are not required to have these specific headstamp markings.

¹² SAAMI Z299.3-2022, Voluntary Industry Performance Standards for Pressure and Velocity of Centerfire Pistol and Revolver Ammunition for the Use of Commercial Manufacturers.

firearm or on the floor in front of the shooter.

C.4.7.2 Propellant utilized in **Service** ammunition shall aid in reducing or minimizing muzzle flash.

C.5 PERFORMANCE REQUIREMENTS

C.5.1 Ammunition shall function¹³ in DOJ-fielded firearms including the following:

- Glock 17 (Gen4, M and M Gen5 MOS)
- Glock 19 (Gen4, M and M Gen5 MOS)
- Glock 26 (Gen4 & Gen5)
- Glock 43
- Glock 43X and 43X MOS
- Glock 45 Gen 5
- Glock 47 Gen 5
- Staccato HD

Authorized pistol mounted optics on DOJ-fielded firearms may include the following:

- Trijicon RMR HD or RMR Type 2 installed with either a C&H Precision or a Forward Controls Design plate.
- RMRcc installed with a Forward Controls Design plate.
- AimPoint Acro P-2 installed with a B&T plate.

C.5.2 The following reliability requirements are specific to the category of ammunition:

- **Service:** Shall have no more than one (1) ammunition failure¹⁴ per 10,000 round sample.
- **Training:** Shall have no more than one (1) ammunition failure per 2,500 round sample.
- **Frangible:** Shall have no more than one (1) ammunition failure per 1,000 round sample.

NOTE: Ammunition failures include ammunition defects and failures that occur at any point in the cycle of operation, which can be attributed to the ammunition. Ammunition failures include, but are not limited to the following: deformed case, inverted primer or bullet, inert or defective primer¹⁵, squib load, inconsistent bullet seating depth, inconsistent powder charge, ammunition that leaves an excessive residue build up in the weapon, excessive primer or bullet sealant (i.e., capable of causing fouling), cartridge not within recommended specifications of the SAAMI, blown primer (excluding those caused by something other than ammunition), and incorrect ammunition.

C.5.3 **Service** and **Training** ammunition: shall have no more than one (1) undetermined stoppage¹⁶ per 2,000 rounds fired. **Frangible** ammunition: shall have no more than one (1) undetermined stoppage per 1,000 rounds fired.

C.5.4 Power Factor Requirements: Ammunition (service, training and frangible), when fired from a Glock

¹³ Functioning is defined as feeding, chambering, locking, firing, unlocking, extracting, ejecting, and cocking. This is also referred to as the "cycle of operation."

¹⁴ Throughout this solicitation, "ammunition failure" and "ammunition-related failure" shall not include any failure which is shooter induced, caused by an improperly maintained weapon, and/or caused by a weapon defect.

¹⁵ The FBI considers primers with a firing pin indentation depth of 0.013" or greater to be sufficient depth to fire the cartridge. Cartridges with a firing pin indentation depth of 0.013" or greater, which do not fire, will be considered a failure of the ammunition.

¹⁶ Undetermined stoppages are those that are not causally determined as shooter-induced, weapon related, or as an ammunition failure.

19M Gen5 MOS, shall have a power factor¹⁷ no less than 125.0 and no greater than 150.0.

C.5.5 Ammunition, when fired from a Glock 17M Gen5 MOS, shall not perforate issued FBI soft body armor.¹⁸

C.5.6 Ammunition shall not cause inoperable damage to the firearm.

C.6 QUALITY CONTROL

C.6.1 Contractor shall be capable of conducting in-house quality control testing to ensure ammunition delivered under this contract meets all requirements.

Note: As **Service** ammunition may be used in defense of life, the Government will stress the importance of maintaining a high level of quality throughout the life of the contract.

C.6.2 For **Service** ammunition, all cartridges delivered under this contract shall undergo an automated digital optical inspection. Digital optical inspection shall ensure the proper application of waterproof sealants (reference Sections C.4.4.5 for sealant requirements) and ensure against cartridge defects.

C.6.3 For **Service** ammunition, Contractor shall provide the Government with a 100-round “Retainer Sample” from all **Service** ammunition lots sold under this contract. The Retainer Sample ammunition shall be shipped to the FBI Ballistic Research Facility in Redstone Arsenal as soon as practical after production.

C.6.4 Ammunition which fails any portion of Contractor’s Quality Control testing shall not be shipped under this contract.

C.6.5 Contractor must possess the capability to conduct in-house failure analysis on any ammunition identified by the FBI which does not function as designed or that exhibits signs of an obvious anomaly. Results of such a failure analysis shall be reported to the FBI and purchasing agency (if different from the FBI) in writing, within ten (10) business days of receipt of the ammunition in question. At that time, Contractor shall also outline remedial action(s) taken to correct the defect, if warranted.

C.6.6 Contractor shall provide specific information on Quality Control measures applied to all ammunition acquired under contract.

C.6.7 For every LOT code shipped, Contractor shall provide pressure/velocity test reports (10 round sample). These reports shall be transmitted electronically to the FBI Ballistic Research Facility at BRF@fbi.gov.

C.7 AUTHORIZED BUYERS

C.7.1 Authorized buyers include Department of Justice (DOJ) agency components, including but not limited to FBI, DEA, and US Marshals. Other agencies, including non-DOJ agencies, may seek permission to utilize the contract on a case-by-case basis.

C.7.2 Interested parties shall contact the Contracting Officer (CO) and Contracting Officer Representative (COR) for authorization. If approved by the CO or COR, an authorization number will be utilized for

¹⁷ Power factor is defined as: bullet weight (grains) x velocity (feet per second) / 1,000. For example, Cartridge A has a bullet weight of 147 grains and an instrumental velocity of 975 fps. The power factor for Cartridge A is: $[(147 \times 975) / 1,000] = 143.325$.

¹⁸ Issued armor includes: Safariland model BA-3A00S-SXHP, Hardwire model HW-2019-05-SB, Tyr Tactical model TYR-NFA3/10 and Tyr Tactical model TYR-NFA2/10).

record keeping purposes.

- C.7.3 All orders shall be prioritized in the order they are received. Emergency orders placed by the FBI, as identified by CO or COR, shall receive priority over all other orders.

C.8 REPORTS

- C.8.1 Contractor shall provide quarterly reports to the Contracting Officer within ten (10) calendar days of the end of the quarter [Jan-Mar/Apr-Jun/Jul-Sep/Oct-Dec] during which supplies were ordered. The report shall include:

- a) Contract Number
- b) Period of Performance (ex: Base Year/Qtr. 1)
- c) List of orders "ACCEPTED" during quarter for each authorized buyer (include delivery order numbers, GPC order numbers & dollar value of orders).

NOTE: "ACCEPTED" refers to an order that has been received during the quarter, regardless of if the order shipped. When an order has been received/accepted by the Contractor, the maximum, not to exceed, contract value is impacted.

- d) Total dollar value of all accepted orders during the quarter (combined quarterly figure).
- e) Total dollar value of usage to date (current quarterly figure combined with previous quarters) under the contract.

- C.8.2 It is preferred that this information be provided using Microsoft Excel.

- C.8.3 If the quarterly report is not provided within ten (10) calendar days of the end of quarter as required, a written explanation as to why the report is tardy shall be provided with the quarterly report.

C.9 SECURITY AND ACCESS CONTROL

- C.9.1 On-site visits require a minimum of 48-hour advance notice, unless an exigent circumstance exists which will require prior CO or COR approval.

C.10 MEDIA STATEMENTS

- C.10.1 All press statements and releases related to the contract shall receive advance written approval from the Contracting Officer.

[End of Section]

SECTION D - PACKAGING AND MARKING

D.1 PACKAGING AND MARKING

- D.1.1 Packaging and packing for all items delivered under this contract shall be in accordance with commercial practice and adequate to ensure acceptance by common carrier and safe arrival at destination. The Contractor shall place the delivery order number on or adjacent to the exterior shipping label.

- D.1.2 Contractor shall be capable of tracking ammunition sold and shipped under the contract in the event

of a recall. Upon request, the Contractor shall supply this information to the CO and/or COR for warranty purposes.

D.2 PACKAGING AND IDENTIFICATION

D.2.1 Ammunition boxes/cartons shall contain 50 rounds.

D.2.2 Ammunition cases shall contain no more than 1,000 rounds.

D.2.3 Upon contract award, the label or markings on the ammunition boxes and cases shall display the ammunition category (e.g., **Service**, **Training** or **Frangible**) as well as the following:

- Manufacturer name
- Caliber of the round
- Bullet weight and design
- Lot number
- Product number or code

D.2.4 Ammunition cases shall display the year of manufacture.

D.2.5 Stacked ammunition shipped on pallets shall display the following information, in plain view, on at least one exterior side (other than top or bottom) of the stack for the purpose of inventory management:

- Manufacturer name
- Caliber of the round
- Bullet weight and design
- Lot number(s)
- Product number or code
- Purpose (**Service**, **Training** or **Frangible**)

D.2.6 Ammunition boxes/cartons shall securely hold all rounds regardless of the orientation.

D.2.7 Ammunition shall be packaged in a manner sufficient to protect the cartridges in transit and in storage.

D.2.8 Ammunition boxes/cartons and cases shall be designed to support the weight of ammunition when stacked for shipping and storage.

D.2.9 Ammunition boxes/cartons may utilize oriented bulk-packing or trays/inserts. Loose bulk-packaging is prohibited. If a tray/insert is utilized, it shall be constructed of biodegradable or recyclable material. Styrofoam or high-density polystyrene trays/inserts are prohibited.

D.2.10 Sales coupons and/or promotional literature inside boxes/cartons or cases are prohibited.

[End of Section]

SECTION E – INSPECTION AND ACCEPTANCE

E.1 QUALITY ASSURANCE

- E.1.1 The Government requires the Contractor to maintain the quality of the product delivered throughout the life of the contract. Quality of the product delivered will be monitored by the COR and/or Technical Point of Contact (TPOC).
- E.1.2 The Government may also conduct random Quality Assurance (QA) testing of delivered ammunition to ensure that it continues to meet all performance requirements.
- E.1.3 Any ammunition that fails the Government's QA testing may be returned to the Contractor, at the discretion of the Government and at no cost to the Government. That ammunition shall be replaced by the Contractor. The Contractor will be notified by the COR, in writing, of the nature of the failure, defect, or deficiency.
- E.1.4 Contractor shall provide a point of contact for administrative matters pertaining to the contract and a point of contact for technical specifications related to the ammunition.
- E.1.5 Contractor shall take corrective action within ten (10) business days of written notification of a contract non-conformance. Action may include replacement of all defective, deficient, or suspect ammunition; and provide the CO and/or COR with written results of failure analysis, and preventative measures to avoid repetitive non-conformances. Any issues pertaining to defective or deficient ammunition shall be resolved to the satisfaction of the FBI.
- E.1.6 Failure to maintain the standards established at the time of award is detrimental to the Government. Should a pattern of failure emerge, this shall constitute grounds for the initiation of termination proceedings.

E.2 WARRANTIES

- E.2.1 Contractor warrants this product to be free of defects and of merchantable quality within the meaning of the Uniform Commercial Code.
- E.2.2 In the event that ammunition-related failures or ammunition defects are encountered which exceeds the failure/defect rate established herein, the Government reserves the right to have the entire affected Lot/Day Code replaced at no additional cost to the Government.
- E.2.3 Ammunition delivered from this contract shall conform to all applicable requirements as outlined in Section C, including applicable standards established by SAAMI.
- E.2.4 Contractor guarantees that the product will maintain a useful shelf life under reasonable storage conditions for a period of five (5) years from the date of purchase.
- E.2.5 The projectile design is compatible with DOJ-fielded firearms and will not result in abnormal wear or damage to any components of the weapons.
- E.2.6 Contractor may be responsible for damaged firearms and/or parts resulting from ammunition failures or defects.
- E.2.7 Contractor shall work with the CO and/or COR to establish a procedure for warranty exchanges.

SECTION F – DELIVERIES AND PERFORMANCE

F.1 PERIOD OF PERFORMANCE

F.1.1 The anticipated period of performance shall be a twelve (12) month base period, to begin on the date of award, with four (4) possible one-year option periods and a possible one-time 6-month extension.

F.2 DELIVERY SCHEDULE

F.2.1 Ammunition shall be shipped to destinations set forth in the respective delivery order or as designated by the Government Purchase Card Request Form.

F.2.2 Contractor is to deliver the entire quantity of ammunition. Partial lots may be accepted with approval from the CO or COR.

F.2.3 Ammunition orders shall be received by the requestor on or before 120 days of the Contractor's receipt of order.

F.3 NOTICE TO THE GOVERNMENT OF DELAYS

F.3.1 In the event the Contractor encounters difficulty in meeting delivery schedules or completion dates, or if the Contractor has knowledge of a situation that may delay the timely delivery or an order, the Contractor shall notify the CO, COR, and Requestor. The notification shall include (1) a detailed justification for the delay and (2) a realistic time for delivery.

F.4 PLACE OF DELIVERY / F.O.B. DESTINATION

F.4.1 Ammunition shall be shipped to all FBI (and other approved Federal government purchasers) locations within CONUS, as well as Hawaii, Alaska, Puerto Rico, and U.S. Virgin Islands. Shipping address will be noted at the time of order.

F.4.2 Delivery of ammunition shall be F.O.B. Destination.

(a) The term "F.O.B. Destination," as used in this clause, means--

- (1) Free of expense to the Government, on board the carrier's conveyance, at a specified delivery point where the consignee's facility (plant, warehouse, store, lot, or other location to which shipment can be made) is located; and
- (2) Supplies shall be delivered to the destination consignee's wharf (if destination is a port city and supplies are for export), warehouse unloading platform, or receiving dock, at the expense of the Contractor. The Government shall not be liable for any delivery, storage, demurrage, accessorial, or other charges involved before the actual delivery (or "constructive placement" as defined in carrier tariffs) of the supplies to the destination, unless such charges are caused by an act or order of the Government acting in its contractual capacity. If rail carrier is used, supplies shall be delivered to the specified unloading platform of the consignee. If motor carrier (including "piggyback") is used, supplies shall be delivered to truck tailgate at the unloading platform of the consignee, except when the supplies delivered meet the requirements of Item 568 of the National Motor Freight Classification for "heavy or bulky freight." When supplies meeting the requirements of the referenced Item 568 are delivered, unloading (including movement to the tailgate) shall be performed by the consignee, with assistance from the truck driver, if requested. If the contractor uses rail carrier or freight forwarder for less than carload shipments, the Contractor shall ensure that the carrier will furnish tailgate delivery, when required, if transfer to truck is required to complete delivery to consignee.

(b) The Contractor shall;

- (1) Pack and mark the shipment to comply with contract specifications; or in the absence of specifications, prepare the shipment in conformance with carrier requirements;
- (2) Prepare and distribute commercial bills of lading;
- (3) Deliver the shipment in good order and condition to the point of delivery specified in the contract;
- (4) Be responsible for any loss of and/or damage to the goods occurring before receipt of the shipment by the consignee at the delivery point specified in the contract;
- (5) Furnish a delivery schedule and designate the mode of delivering carrier; and
- (6) Pay and bear all charges to the specified point of delivery.

(End of Clause)

[End of Section]

SECTION G – CONTRACT ADMINISTRATION

G.1 JAR 2852.201-70 CONTRACTING OFFICER'S REPRESENTATIVE

(COR) (NOV 2020)

- A. Mr./Ms. (Name) of (Organization), (Address), (Area Code & Telephone No.), is hereby designated to act as Contracting Officer's Representative (COR) under (contract #), for the period of (specify the performance period of the contract that the designation covers).
- B. The COR is responsible, as applicable, for: receiving all deliverables, inspecting and accepting the supplies or services provided in accordance with the terms and conditions of this contract; Clarifying, directing, or redirecting the contract effort, including shifting work between work areas and locations, filling in details, or otherwise serving to accomplish the contractual statement of work to ensure the work is accomplished satisfactorily; evaluating performance of the contractor; and, certifying all invoices/vouchers for acceptance of the supplies or services furnished for payment.
- C. The COR does not have the authority to issue direction that: constitutes a change of assignment or work outside the contract specification/work statement/scope of work. Constitutes a change as defined in the clause entitled "Changes" or other similar contract term. (iii) Causes, in any manner, an increase or decrease in the contract price or the time required for contract performance; Causes, in any manner, any change in a term, condition, or specification or the work statement/scope of work of the contract; Causes, in any manner, any change or commitment that affects price, quality, quantity, delivery, or other term or condition of the contract or that, in any way, directs the contractor or its subcontractors to operate in conflict with the contract terms and conditions; Interferes with the contractor's right to perform under the terms and conditions of the contract; Directs, supervises, or otherwise controls the actions of the Contractor's employees or a Subcontractor's employees.

(End of clause)

G.2 ORDERING

In accordance with Revolutionary FAR Overhaul (RFO) 16.506(a), Postaward procedures for placement of task and delivery orders, and the clause at 52.216-18, Ordering, any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule.

G.3 INVOICING REQUIREMENTS

Invoices shall be submitted electronically to Invoice Processing Platform (IPP.gov).

All invoices are required to have a unique identifying, non-duplicable number, and reflect the contract number, delivery order number, list of supplies, delivery date and Contractor point of contact information (name, email address, phone number).

It shall be the Contractor's responsibility to include the information required by this contract on each invoice. If an invoice does not contain the above information, the Government reserves the right to reject the invoice as IMPROPER and notify the vendor within seven (7) days after receipt of the invoice at the designated billing office. Resubmission of a PROPER invoice will be required.

Any requirement for resubmission for payment or Contractor questions regarding payment should be directed to the COR or Agency Point of Contact under the contract. All follow-up invoices (i.e., revised, resubmitted) shall be marked "REVISED".

G.4 SMALL BUSINESS ACCELERATED PAYMENT

Contractor must indicate its business size on each invoice to assist payment office in determining eligibility for accelerated payment in accordance with OMB Memo M-11-32, 'ACCELERATING PAYMENTS TO SMALL BUSINESSES FOR GOODS AND SERVICES', dated 09/14/2011. The Prompt Payment Act still applies to this action; however, the agency will make best efforts to pay proper invoices within 15 days.

G.5 PAYMENT

Payment shall be made via Electronic Funds Transfer (EFT) through IPP in accordance with the Prompt Payment Act upon Delivery Location POC certification of receipt of supplies.

G.6 WITHHOLDING OF CONTRACT PAYMENTS

Notwithstanding any other payment provision of this contract, failure of the Contractor to submit required reports when due or failure to perform or deliver required work, supplies, or services will result in the withholding of payments under this contract unless such failure arises out of causes beyond the control, and without the fault or negligence of the Contractor as defined by the terms and conditions of the contract. The Government shall promptly notify the contractor of its intention to withhold payment of any invoice or voucher submitted.

[End of Section]

SECTION H – SPECIAL CONTRACT REQUIREMENTS

H.1 DISCLOSURE OF DATA UNDER THE FREEDOM OF INFORMATION ACT (FOIA)

If a request for information contained in a proposal is requested under the FOIA, the Government shall have the right to disclose any information or data contained in a proposal that results in a contract to the extent provided under the FOIA, notwithstanding any restrictive legends that may have been placed upon it in accordance with other contract provisions. The Government will, before disclosure, make an administrative determination on a case-by-case basis as to whether the information requested is exempt from disclosure by one of the established exceptions to the ACT. In making this determination the procedures outlined in 28 CFR, paragraph 16.7 shall be followed which, in part, affords the submitter of a proposal an opportunity to object to disclosure.

H.2 GOVERNMENT RIGHTS IN DATA AND COPYRIGHTS

The Government shall have unlimited rights, as delineated in the FAR clause Rights in data-special works (52.227-17), which is included in SECTION I by reference, to all documentation and other data developed by the Contractor under this contract.

The Contractor shall not duplicate or disclose in any manner, for any purpose whatsoever, or have or permit others to do so, any documentation or other data developed and/or obtained by the Contractor under this contract. Any publications, presentations and other releases of information regarding this contract must be pre-approved by the Contracting Officer.

H.3 CONTRACTOR SUITABILITY REQUIREMENT

Access to FBI facilities and information is subject to specific security and suitability requirements. The FBI reserves the right and prerogative to deny and/or restrict facility and information access of any contractor employee determined by the FBI, at any time during performance, to be unsuitable for access and/or present a risk of compromising sensitive government information to which he or she would have access to under this contract. Contractors will be allotted a reasonable amount of time, determined by the government, to replace the employee found not suitable for continued contract performance. Failure to replace the employee may result in a no cost termination for cause by the government.

H.4 DISRUPTION TO THE SCHEDULE

The Contractor shall notify the COR at any time when there is or may be a disruption of any type which would delay any deliveries under the schedule. Such notification shall be provided to the COR by telephone, as soon as the situation is known to the Contractor and shall be followed up in writing to both the COR and Contracting Officer within five (5) days.

[End of Section]

PART II – CONTRACT CLAUSES

SECTION I – CONTRACT CLAUSES

I.1 **52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)**

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far/>

A. FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES

<u>NUMBER</u>	<u>TITLE</u>	<u>DATE</u>
52.202-1	DEFINITIONS	JUN 2020
52.203-3	GRATUITIES	APR 1984
52.203-5	COVENANT AGAINST CONTINGENT FEES	MAY 2014
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	NOV 2023
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN 2017
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	NOV 2025
52.212-4	TERMS & CONDITIONS – COMMERCIAL PRODUCTS and COMMERCIAL SERVICES	NOV 2025
52.232-18	AVAILABILITY OF FUNDS	APR 1984
52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	MAR 2023
52.233-1	DISPUTES	NOV 2025
52.242-13	BANKRUPTCY	JUL 1995
52.253-1	COMPUTER GENERATED FORMS	NOV 2025
52.240-91	SECURITY PROHIBITIONS AND EXCLUSIONS	NOV 2025
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS	NOV 2025
52.233-3	PROTEST AFTER AWARD	NOV 2025
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	NOV 2025
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT	JUN 2020
52.209-6	PROTECTING THE GOVERNMENT’S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED	NOV 2025
52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS	NOV 2025
52.222-19	CHILD LABOR-COOPERATION WITH AUTHORITIES And REMEDIES	NOV 2025
52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT	NOV 2025
52.222-50	COMBATING TRAFFICKING IN PERSONS	NOV 2025
52.225-1	BUY AMERICAN-SUPPLIES	NOV 2025
52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN	MAY 2024

52.232-33	TEXT MESSAGING WHILE DRIVING PAYMENT BY ELECTRONIC FUNDS	OCT 2018
52.203-13	TRANSFER-SYSTEM FOR AWARD MANAGEMENT CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT	NOV 2021

(End of Clause)

I.2 52.216-18 ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from date of award through the conclusion of current performance period.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) If mailed, a delivery order or task order is considered “issued” when the Government deposits the order in the mail. Orders may be issued orally, by facsimile, or by electronic commerce methods only if authorized in the Schedule.

(End of Clause)

I.3 52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in a quantity of less than one (1) case, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor --

(1) Any order for a combination of items in excess of \$4,000,000.00; or

(2) A series of orders from the same ordering office within thirty (30) days that together call for quantities exceeding the limitation in subparagraph (b) (1) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within ten (10) days after issuance, with written notice stating the Contractor’s intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

I.4 52.216-22 INDEFINITE QUANTITY (NOV 2025)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or

services specified in the Schedule up to and including the quantity designated in the Schedule as the “maximum.” The Government shall order at least the quantity of supplies or services designated in the Schedule as the “minimum.”

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor’s and Government’s rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract’s ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract twelve months after the last day of the final period of performance.

(End of Clause)

I.5 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years plus six (6) months.

(End of Clause)

I.6 DOJ-08 CONTINUING CONTRACT PERFORMANCE DURING A PANDEMIC INFLUENZA OR OTHER NATIONAL EMERGENCY (OCT 2007)

During a Pandemic or other emergency, we understand that our contractor workforce will experience the same high levels of absenteeism as our Federal employees. Although the Excusable Delays and Termination for Default clauses used in Government contracts list epidemics and quarantine restrictions among the reasons to excuse delays in contract performance, we expect our contractors to make reasonable effort to keep performance at an acceptable level during emergency periods.

The Office of Personnel Management (OPM) has provided guidance to Federal managers and employees on the kinds of actions to be taken to ensure the continuity of operations during emergency periods. This guidance is also applicable to our contract workforce. Contractors are expected to have reasonable policies in place for continuing work performance, particularly those performing mission critical services during a pandemic influenza or other emergency situation.

The types of actions a Federal contractor should reasonably take to help ensure performance are:

- Encourage employees to get inoculations or follow other preventive measures as advised by the public health service.

- Contractors should cross-train workers as backup for all positions performing critical services. This is particularly important for work such as guard services where telework is not an option.
- Implement telework to the greatest extent possible in the workgroup so systems are in place to support successful remote work in an emergency.
- Communicate expectations to all employees regarding their roles and responsibilities in relation to remote work in the event of a pandemic health crisis or other emergency.
- Establish communication processes to notify employees of activation of this plan.
- Integrate pandemic health crisis response expectations into telework agreements.
- With the employee, assess requirements for working at home (supplies and equipment needed for an extended telework period). Security concerns should be considered in making equipment choices; agencies or contractors may wish to avoid use of employees' personal computers and provide them with PCs or laptops as appropriate.
- Determine how all employees who may telework will communicate with one another and with management to accomplish work.
- Practice telework regularly to ensure effectiveness.
- Make it clear that in emergency situations, employees must performance all duties assigned by management, even if they are outside usual or customary duties.
- Identify how time and attendance will be maintained.

It is the contractor's responsibility to advise the Government Contracting Officer if they anticipate not being able to perform and to work with the Department to fill gaps as necessary. This means direct communication with the Contracting Officer or in his/her absence, the Contracting Officer's Representative (COR), via telephone or e-mail messages acknowledging the contractor's notification. The incumbent contractor is responsible for assisting the Department in estimating the adverse impacts of nonperformance and to work diligently with the Department to develop a strategy for maintaining continuity of operations.

The Department does reserve the right in such emergency situations to use Federal employees, employees of other agencies, contracting support from other existing contractors, or to enter into new contracts for critical support services. Any new contracting efforts would be acquired following the guidance in the Office of Federal Policy issuance "Emergency Acquisitions", dated May 2007 and Subpart 18.2, Emergency Acquisition Flexibilities, of the Federal Acquisition Regulations.

(End of Clause)

I.7 DOJ-01 WHISTLEBLOWER INFORMATION DISTRIBUTION (OCT 2021)

Within 30 days of contract award, the contractor and its subcontractors must distribute the "Whistleblower Information for Employees of DOJ Contractors, Subcontractors, Grantees, or Sub-Grantees or Personal Services Contractors" ("Whistleblower Information") document to their employees performing work in support of the products and services delivered under this contract (<https://oig.justice.gov/sites/default/files/2020-04/NDAA-brochure.pdf>).

By agreeing to the terms and conditions of this contract, the prime contractor acknowledges receipt of this requirement, in accordance with 41 U.S.C. § 4712 and FAR 3.906 & 52.203-17, and commits to distribution. Within 45 days of award, the contractor must provide confirmation to the contracting officer verifying that it has distributed the whistleblower information as required.

(End of Clause)

I.8 FBI-0023 FEDERAL BUREAU OF INVESTIGATION ELECTRONIC INVOICING REQUIREMENT (JUL 2024)

The Federal Bureau of Investigation (FBI) requires vendors to submit a proper invoice and supporting documentation electronically through the Invoice Processing Platform (IPP). IPP is a secure, web-based electronic invoicing system provided by the U.S. Department of Treasury's Bureau of the Fiscal Service (Treasury) in partnership with the Federal Reserve Bank of St. Louis (FRSTL). IPP is available at no cost to any commercial vendor or independent contractor doing business with a participating government agency.

Invoice Submission

Vendors are required to create and submit electronic invoices using the IPP system. All supporting documentation shall be uploaded into the IPP system.

Invoices must be submitted at least monthly but no more than bi-weekly. Final invoices must be submitted 30 days after the end date of the period of performance.

Invoices submitted by email will not be accepted. This requirement applies immediately upon contract award. For contract-specific questions, please contact the contracting officer.

Obtaining IPP Access

If your company has already enrolled in IPP. You will not be required to re-register. Please contact your company's IPP account administrator so that he/she may add you as an additional user to your company's IPP collector account.

If your company has NOT enrolled in IPP: Your company will be auto enrolled for IPP using information from your SAM account. Your company's Primary Electronic Business Point of Contact (POC) will be designated as an IPP administrator. This POC will be contacted by email to register when the FBI initiates the enrollment process through IPP. To prevent enrollment delays, please ensure your designated Electronic Business POC in SAM.gov is up to date. Your company's IPP administrator will be responsible for initial account registration as well as creating and managing your company's IPP users and permissions. Please note that due to U.S. Department of the Treasury guideline, IPP cannot set up User IDs using a shared email address.

How to register for IPP:

1. Once FBI initiates the enrollment process, your company's designated Electronic Business POC in SAM.gov will receive two emails from IPP Customer Support (noreply@email.eroctwai.gov). The first email contains the initial administrative IPP User ID. The second email, sent with 24 hours of receipt of the first email, contains a temporary password. You must log in with the temporary password within 30 days.

Training

Vendor training materials, including a first-time login tutorial, are available on the IPP.gov website. Once you have logged in to the IPP application, you will have access to user guides that provide step-by-step instructions for all IPP capabilities ranging from creating and submitting an invoice to setting up email notifications.

Additional Support

IPP Customer Support Team is available Monday through Friday from 8:00 am to 6:00 pm EST. Phone (866) 973-3131 or email: IPPCustomerSupport@fiscal.treasury.gov. For answers to frequently asked questions, visit the Vendor FAQ page on the gov web site.

(End of Clause)

I.9 FBI-0029 PUBLIC RELEASE OF INFORMATION (OCT 2024)

The FBI requires that contractors shall not divulge, publish, or disclose information or produce material related to the contract award, or acquired in or derived from the performance of their duties without prior written consent of the FBI.

For purposes of this Clause, "Information" shall include but not be limited to any or all written or spoken language or recordings made public, including: web sites or social media platforms, including X (formerly Twitter), Instagram, TikTok, etc.; publications, studies, books, and theses; photographs and videos/films; and public announcements and press releases describing any part of the subject matter of this contract or any phase of any program hereunder, except to the extent such information is:

- 1) already known to the Contractor prior to the commencement of the contract; or
- 2) required by law, regulation, subpoena or government or judicial order to be disclosed, including the Freedom of Information Act.

No release of information shall be made without the prior written consent of the Office of Public Affairs and/or the Contracting Officer of the FBI. Information should be sent to: RNOLIVER2@fbi.gov. The FBI will make every effort to review proposed publications in a timely manner. Public disclosure of information without prior FBI approval could result in financial penalties or a termination for default of the contract.

Where appropriate, in accordance with established academic publishing practices, the FBI reserves the right to author/co-author any publication derived from this contract.

These obligations do no cease upon completion of the contract.

(End of Clause)

I.10 FBI-0030 ORGANIZATIONAL CONFLICT OF INTEREST (OCT 2024)

a. Purpose: The purpose of this clause is to ensure that:

- i. The Contractor is rendering impartial assistance and advice to the Government at all times under this contract and related Government contracts;

- ii. The Contractor's objectivity in performing work under this contract or related Government contracts is not impaired; and
 - iii. The Contractor does not obtain an unfair competitive advantage by virtue of its access to non-public Government information, or by virtue of its access to proprietary information belonging to others.
- b. Scope: The Organizational Conflict of Interest (OCI) rules, procedures and responsibilities described in FAR 9.5 "Organizational and Consultant Conflicts of Interest", FAR 3.101-1 "Standards of Conduct – General, and in this clause are applicable to the prime Contractor (including any affiliates and successors-in-interest), as well as any co-sponsor, joint-venture partner, consultant, subcontractor or other entity participating in the performance of this contract. The Contractor shall flow this clause down to all subcontracts, consulting agreements, teaming agreements, or other such arrangements which have OCI concerns, while modifying the terms "contract", "Contractor", and "Contracting Officer" as appropriate to preserve the Government's rights.
- c. Access to and Use of Nonpublic Information: If in performance of this contract the contractor obtains access to nonpublic information such as plans, policies, reports, studies, financial plans, or data which has not been released or otherwise made available to the public, the Contractor agrees it shall not use such information for any private purpose or release such information without prior written approval from the Contracting Officer.
- d. Access to and Protection of Proprietary Information: The Contractor agrees to exercise due diligence to protect proprietary information from misuse or unauthorized disclosure in accordance with FAR 9.505-4. The Contractor may be requested to enter into a written non-disclosure agreement with a third party asserting proprietary restrictions, if required in the performance of the contract.
- e. In accordance with FAR 3.101-1, the Contractor shall also take all appropriate measures to prevent the existence of conflicting roles that might bias the Contractor's judgement, give the Contractor an unfair competitive advantage, and deprive the FBI of objective advice or assistance that can result from hiring former Government employees. (See Health Net Fed. Svcs, B-401652.3).
- f. OCI Disclosures: The Contractor shall disclose to the Contracting Officer all facts relevant to the existence of an actual or potential OCI, prior to award and any time after award. In the proposal submission, contractors must certify that they have not participated in the development of the solicitation in any capacity and must provide a list of any former FBI employees. OCI Disclosures after award must address any listed in this clause or FAR 9.5. This disclosure shall include a description of the OCI and the action the Contractor has taken or plans to take to avoid, neutralize or mitigate the OCI.
- g. Remedies and Waiver:
- i. If the contractor fails to comply with any requirements of FAR 9.5, FAR 3.101-1, or this clause, the Government may terminate this contract for default, disqualify the Contractor from subsequent related contractual efforts if necessary to neutralize a resulting organizational conflict of interest, and/or pursue other remedies permitted by law or this contract. If the Contractor discovers and promptly reports an actual or potential OCI subsequent to contract award, the Contracting Officer may terminate this contract for convenience if such termination is deemed to be in the best interest of the Government or take other appropriate actions
 - ii. The parties recognize that the requirements of this clause may continue to impact the contractor after contract performance is completed, and that it is impossible to foresee all future impacts. Accordingly,

the Contractor may at any time seek an OCI waiver from the FBI Head of Contracting by submitting a written waiver request to the Contracting Officer. Any such request shall include a full description of the OCI and detailed rationale for the OCI waiver.

(End of Clause)

I.11 FBI-0033 LEGAL HOLIDAYS, GOVERNMENT DISMISSALS AND CLOSURES, AND FURLOUGH (JAN 2025)

(a) Definitions

Compensated personal absence means any absence from work for reasons such as illness, vacation, holidays, jury duty, military training, or personal activities for which an employee pays compensation directly to an employee in accordance with a plan or custom of the employer.

Fringe benefits are allowances and services provided by the contractor to its employees as compensation in addition to regular wages and salaries. Fringe benefits include, but are not limited to, the cost of vacations, sick leave, holidays, military leave, employee insurance, and supplemental unemployment benefit plans. Except as provided otherwise in FAR subpart 31.2, the costs of fringe benefits are allowable to the extent that they are reasonable and are required by law, employer-employee agreement, or an established policy of the contractor.

Furlough is the placing of a contract on a temporary hold because of lack of work or funds. In the event that funds are not available through an appropriations law or continuing resolution, a “shutdown” furlough occurs. A shutdown furlough is necessary when an agency no longer has the necessary funds to operate and must shut down those activities which are not excepted pursuant to the Antideficiency Act (31 U.S.C § 1341-1342).

Holiday means any calendar day designated as a holiday by Federal Statute, Executive Order, or Presidential Proclamation.

Hours Worked ordinarily include all the time during which an employee is required to be on the employer’s premises, on duty, or at a prescribed workplace.

(b) Holidays

(1) The United States Government observes the following days as holidays:

- New Year’s Day (January 1)
- Birthday of Martin Luther King, Jr. (Third Monday in January)
- Washington’s Birthday (Third Monday in February)
- Memorial Day (Last Monday in May)
- Juneteenth National Independence Day (June 19)
- Independence Day (July 4)
- Labor Day (First Monday in September)
- Columbus Day (Second Monday in October)
- Veterans Day (November 11)
- Thanksgiving Day (Fourth Thursday in November)
- Christmas Day (December 25)

(2) In addition to the days designated as holidays, the Government observes the following days:

- Any other day designated by Federal Statute
- Any other day designated by an Executive Order
- Any other day designated by the President’s Proclamation

- (3) When New Year's Day, Juneteenth National Independence Day, Independence Day, Veteran's Day or Christmas Day falls on a Sunday, the following Monday is observed; when it falls on Saturday, the preceding Friday is observed.
- (4) Observance of holidays by Government personnel shall not be cause for additional period of performance of the contract.
- (5) Observance of holidays by Government personnel shall not be cause for additional compensation and are not considered hours worked by the contractor. If the contractor's employee(s) work on a holiday, no form of holiday or other premium compensation will be reimbursed either as a direct or indirect cost to this contract. Contractors are not authorized to "make up" hours worked to compensate for observance of holidays. Compensated personal absences form work for reasons such as illness, vacation, holidays, jury duty, military training, or personal activities are absences for which an employer pays compensation directly to an employee in accordance with an employer plan or customary practices of the employer. These benefits are generally a matter of agreement between an employer and an employee (or the employee's representative).

If the contractor is required to work for mission critical requirements, the contractor will be notified by the Contracting Officer to perform work on the holiday and the work will be recognized as hours work and will be an allowable charge to the contract.

(c) Government Dismissals and Closures

The FBI may issue a dismissal for closure of the government offices during emergencies, severe weather conditions, natural disasters, and other incidents or hazards that cause disruptions to Federal Government operations.

When the FBI issues a dismissal to its Government employees, assigned contractor personnel in Government facilities shall also be dismissed. For the continuity of operations, contractor personnel are required to telework at an approved alternative worksite unless the contract does not allow telework. In those instances where telework is not allowed, the contractor agrees to continue to provide sufficient personnel to perform round-the-clock requirements of critical tasks already in operation or scheduled and shall be guided by the instructions issued by the Contracting Officer or his/her duly authorized Contracting Officer Representative.

(d) Firm Fixed Price contract deductions

For fixed-price contracts, if services are not required or provided because the building is closed due to inclement weather, unanticipated holidays declared by the President, failure of Congress to appropriate funds, or similar reasons, deductions will be computed as follows:

- a. The deduction rate in dollars per day will be equal to the per month contract price divided by 21 days per month.
- b. The deduction rate in dollars per day will be multiplied by the number of days services are not required or provided. If services are provided for portions of days, appropriate adjustment will be made by the contracting officer to ensure that the contractor is compensated for services provided.

(e) Furloughs

In the event the Government goes into furlough status, the Contracting Officer will provide notification to the Contractor to either 1) continue work or 2) that the Contractor is in a furlough status and should cease work until authorized to continue.

The notification from the Contracting Officer will not be provided to the contractor until the next business day following the government furlough status, no prior notifications will occur. If the contractor is authorized to continue work, the contractor is only authorized to continue work until such point that the period of performance of the contract has expired or all funding has been expended. The contractor is not authorized to perform services when funding is not available. Contractors are not authorized to work during a furlough unless specifically directed to work by the Contracting Officer.

(f) Administrative Leave – Excusable Delays

If administrative leave is granted to contractor personnel as a result of conditions stipulated in any “Excusable Delays” clause of this contract, it will be without loss to the contractor. The cost of salaries and wages to the contractor for the period of any such excused absence shall be a reimbursable item of direct cost hereunder for employees whose regular time is normally charged, and a reimbursable item of indirect cost for employees whose time is normally charged indirectly in accordance with the contractor's accounting policy.

(End of Clause)

I.12 FBI-0034 USE OF NON-GOVERNMENT ADVISORS

Offerors/Vendors are advised that the Government is supported by non-government acquisition specialists, who assist the Government in procurement actions. All proposal information may be available to these non-government acquisition specialists; however, non-government acquisition specialists will not evaluate proposals or be part of the source selection evaluation board. All non-government acquisition specialists have signed non-disclosure agreements. Due to the nature of the work performed by non-government acquisition specialists, the vendor, is prohibited from competing on or being awarded any FBI requirement other than those placed against the FBI's Procurement Support Services (PSS) Blanket Purchase Agreement (BPA).

By submitting a quote, offer, task order, proposal, etc. the Offeror/Vendor understands all proposal or quote information may be available to non-government acquisition specialists.

(End of Clause)

[End of Section]

PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS

SECTION J - LIST OF ATTACHMENTS

<u>ATTACHMENT</u>	<u>TITLE</u>	<u>NUMBER OF PAGES IN THE ATTACHMENT</u>
1	Pricing Matrix	2
2	Past Performance Questionnaire	6
3	Manufacturer Checklist	2
4	Manufacturer Test Data Sheets	9

SECTION J

ATTACHMENT 1 – PRICING MATRIX

The Pricing Matrix below shall be used to document the proposed price for each unit (per round and per case) of the product for the base year and each option year of the contract. Offerors shall also provide pricing for a potential 6-month extension in accordance with FAR 52.217-9, “Option to Extend the Term of the Contract.”

Note: Offerors are not required to submit for each category of ammunition (Service, Training and Frangible). Offerors may submit in one, two or all three categories.

Ammunition – 9mm

CLIN	Product Description	Base Year	Option Year 1	Option Year 2	Option Year 3	Option Year 4	52.217-9 6-month Extension
001	Service Ammunition 9mm	[] /round [] /case	[] /round [] /case	[] /round [] /case	[] /round [] /case	[] /round [] /case	[] /round [] /case
002	Training Ammunition 9mm	[] /round [] /case	[] /round [] /case	[] /round [] /case	[] /round [] /case	[] /round [] /case	[] /round [] /case
003	Frangible Ammunition 9mm	[] /round [] /case	[] /round [] /case	[] /round [] /case	[] /round [] /case	[] /round [] /case	[] /round [] /case

SECTION J

ATTACHMENT 1 – PRICING MATRIX CONTINUED

Total Evaluated Price

Offerors are not required to submit for each category of ammunition. An offer that does not include all line items shall clearly be marked on the Price Matrix with “no bid” for those line items. Line items left blank may be viewed as “Non Responsive.” A “Non-Responsive” submission fails to meet the material requirements and may be grounds for dismissal. Any proposed line item that does not offer a price for the base and four option periods may not be eligible for an award.

Section M outlines the evaluation process. The prices entered in the Offeror’s proposal Price Matrix (above) shall be used by the Contracting Officer for his/her evaluation of price reasonableness and in determination of which offer is the most advantageous to the Government.

Note: For comparison purposes, the Contracting Officer will consider the price per round across the base period and all option periods. The Government recognizes that the quantity of rounds per case may vary, and as such, will compare the per round price.

SECTION J

ATTACHMENT 2 – PAST PERFORMANCE QUESTIONNAIRE

The prospective Offeror listed in Block 1 is submitting a proposal in response to a Department of Justice, Federal Bureau of Investigation solicitation for the acquisition of **Ammunition – 9mm Luger**. You have been identified as a performance reference for the below Offeror.

The Federal Government values your input and greatly appreciates your willingness to thoughtfully complete this performance evaluation. Please provide candid responses.

The information that you provide will be used in the award of a federal contract; therefore, it is important that your information be as factual, accurate and complete as possible to preclude the need for follow-up. Please return the completed Questionnaire within 5 business days of receipt.

If you do not have knowledge of or experience with the below company, please forward this questionnaire to an individual within the agency who does.

By law, the Government will not disclose the names of individuals providing reference information during discussions with contractors.

BLOCK 1/OFFEROR: INSERT OFFEROR'S NAME

PART I. BACKGROUND

A. Respondent Identification

Organization:

Address:

Name:

Title:

Telephone Number:

Email Address:

B. Contract Identification

Contract Award Date:

Contract Number:

Contract Type:

Contract Value (Including All Option Periods):

Contract Term (Years):

Description of Services / Scope of Work:

PART II. EVALUATION

Performance Grades:

Exceptional - Contractor's performance significantly exceeded most or all contract requirements. The contractual performance of the element or sub-element being assessed was accomplished with few minor problems for which corrective actions taken by the Contractor were highly effective.

Satisfactory - Performance meets contractual requirements and exceeds some to the Government's benefit. The contractual performance of the element or sub-element being assessed was accomplished with some minor problems for which corrective actions taken by the Contractor were effective.

Marginal - Performance meets most contractual requirements. The contractual performance of the element or sub-element being assessed reflects a problem for which the Contractor has not yet identified corrective action or the Contractor's proposed actions appears to be effective or has not been fully implemented.

Unsatisfactory - Performance does not meet most contractual requirements and recovery is not likely in a timely manner. The contractual performance of the element or sub-element contains serious problems(s) for which the Contractor's corrective actions appear or were ineffective.

Please grade each of the areas below and provide meaningful feedback/comments based on your knowledge of how the contractor performs in each area. Both positive and negative feedback is encouraged.

A. Quality of Work / Compliance with Specification Requirements
--

Unsatisfactory

☐

Marginal

☐

Satisfactory

☐

Exceptional

☐

Additional Comments

B. Adherence to Delivery Schedule / Timeliness of Product Deliverables

Unsatisfactory

☐

Marginal

☐

Satisfactory

☐

Exceptional

☐

Additional Comments

C. Initiative in Solving Contract problems / Ability to solve contract performance issues without extensive guidance from Government personnel.

Unsatisfactory

☐

Marginal

☐

Satisfactory

☐

Exceptional

☐

Additional Comments

D. Responsiveness to Technical Direction / Contract Changes

Unsatisfactory

☐

Marginal

☐

Satisfactory

☐

Exceptional

☐

Additional Comments:

E. Responsiveness / Capability to respond to urgent / short term requirements.

Unsatisfactory

☐

Marginal

☐

Satisfactory

☐

Exceptional

☐

Additional Comments:

F. Accuracy of Reports / Documentation

Unsatisfactory

☐

Marginal

☐

Satisfactory

☐

Exceptional

☐

Additional Comments

G. Submission of current, accurate, and complete billings

Unsatisfactory

☐

Marginal

☐

Satisfactory

☐

Exceptional

☐

Additional Comments

H. Effectiveness / Reliability / Responsiveness of Contractor's Key Personnel

Unsatisfactory

☐

Marginal

☐

Satisfactory

☐

Exceptional

☐

Additional Comments:

I. Has the Contractor ever been issued a cure notice, a show cause notice, suspension of progress payments, or other letters directing the correction of a performance problem?

Yes

☐

No

☐

If yes, please explain:

J. Based on the Contractor's overall performance, would you select this firm again?

Yes

No

☐☐

If no, please explain:

K. General Comments. Please provide any additional relevant performance information.

PART III. RETURN INFORMATION

Please return the completed questionnaire electronically to: knhaley@fbi.gov

Kayla Nicole Haley
Contracting Specialist
Federal Bureau of Investigation

SECTION J

ATTACHMENT 3 – MANUFACTURER CHECKLIST

This checklist is to assist Offerors with the documentation required for Technical Proposals. Detailed instructions for the submission of proposals can be found in Section L of this solicitation. As documented in Section L.10 (Instructions for Submission of Proposals), electronic submissions are required. The following information shall be included in the submission:

1. Company background

A concise description of the Offeror's corporate history. This may include organizational structure, years of experience in ammunition manufacturing, and any relevant certifications or accreditations.

2. List of key personnel and relevant expertise

A list of key personnel responsible for ammunition design, production, quality assurance, and testing. Include summaries of relevant qualifications, experience, and areas of expertise.

3. Information on cartridge design

A detailed description of the design characteristics of each ammunition type offered, including materials, components, performance, and any unique design features.

4. Information on manufacturing facilities including:

- Production capacity and throughput
- Quality control systems and processes

5. Description of product warranty

A description of the warranty terms applicable to the ammunition, including coverage, duration, and procedures for addressing defects or performance issues.

6. Manufacturer data sheets (completed by the Offeror, see Section J, Attachment #4)

Completed Manufacturer Data Sheets for each ammunition type submitted, in accordance with Section J, Attachment 4.

7. Documentation of pressure test results for SAAMI pressure testing.

The Offeror shall provide pressure test data for **10 rounds**, conducted in accordance with SAAMI standards at ambient temperature. Data shall include, at a minimum:

- Muzzle velocity for each shot
- Peak pressure¹⁹ for each shot
- Maximum Average Pressure (MAP)
- Maximum Probable Sample Mean (MPSM)

8. Documentation of Environmental Pressure Test results (i.e., High Temperature and Low Temperature pressure tests).

¹⁹ All pressure values shall be reported in psi.

The Offeror shall provide pressure test data for **10 rounds at high temperature** and **10 rounds at low temperature**, in accordance with the procedures described in **Phase II, Factor 5 – Environmental Pressure**. Data shall include:

- Muzzle velocity for each shot
- Peak pressure for each shot
- Maximum Average Pressure (MAP)
- Maximum Probable Sample Mean (MPSM)

9. Material Safety Data sheets for each ammunition submission

Note: This Manufacturer Checklist is also included in Section L.6, PROPOSAL PREPARATION INSTRUCTIONS: VOLUME #1 TECHNICAL PROPOSAL.

SECTION J - ATTACHMENT 4

MANUFACTURER DATA SHEET

Ammunition – 9mm

Service Ammunition

General Information	
Manufacturer:	[]
Address:	[]
Principal Technical Contact:	[]
Telephone:	[]
Email address:	[]
Product name:	[]
Product part number:	[]
Rounds per box:	[]
Rounds per case:	[]
Projectile weight:	[]
Projectile composition:	[]
Sectional Density:	[]
LOT/DAY CODE numbers:	[]
Meaning of characters in LOT/DAY CODE numbers:	[]

Component Compositions		
ITEM	MANUFACTURER	TYPE
Projectile:	[]	[]
Case mouth Sealant:	[]	[]
Case:	[]	[]
Primer:	[]	[]
Primer Sealant:	[]	[]
Propellant (product name):	[]	[]
Headstamp marking:	[]	
Headstamp meaning:	[]	
Material Safety Data sheets attached:		Yes [] or No []
Production group size (10-rounds) at 50 meters (or yards) from a test barrel:		[0.00] in.
Velocity window for optimal terminal performance: *	Minimum: [] fps	Maximum: [] fps
* Optimal terminal performance: The “minimum velocity” should reflect the velocity where a projectile designed to expand would fail to expand when impacting a block of validated ballistic gelatin. The “maximum velocity” should reflect the velocity where, for example, a projectile could suffer structural damage inhibiting the projectile from performing as designed.		

Factor #1 - Terminal Performance				
Note: The Government will perform this evaluation three (3) times (once each with a Glock 19, Glock 17, and Glock 43X). Offerors are permitted, but not required, to send test scores for all three weapons. If an Offeror sends only one set of test scores, please include test data from a Glock 19.				
Test Event	Avg. Penetration (in.)	Standard Deviation	Avg. Expansion (in.)	Avg. Retained Weight (gr.)
Bare gelatin	[]	[]	[]	[]
Heavy clothing	[]	[]	[]	[]
Steel	[]	[]	[]	[]
Wallboard	[]	[]	[]	[]
Plywood	[]	[]	[]	[]
Automobile glass	[]	[]	[]	[]
Overall Average (avg. of all 30 rounds)	[]	[]	[]	[]
Total # of shots < 12":			[]	
Factor 1 - Score Calculations				
Average Penetration (in.):			[] = [] score	
Standard Deviation:			[] = [] multiplier	
Avg. Penetration points x Std. Deviation points			[] score	
Average Expansion:			[] = [] score	
Average Retained Weight Percentage:			[] = [] score	
Shots less than 12":			[] = [] score	
Terminal Performance Points:			[] points	

Factor #2 - Accuracy - Glock Barrel	
Note1: The Government will perform this evaluation with a Wiseman fixture. If Offerors do not have access to such a test fixture, Offerors may submit test data fired from a pistol. Accuracy groups shall be 5-shot groups.	
Note 2: If Offeror does not have access to 50m range, please provide group sizes at either 25y or 50y and clearly identify the distance used.	
Group #	Group Size (in.)
Group #1	[]
Group #2	[]
Group #3	[]
Group #4	[]
Group #5	[]
Group #6	[]
Average of 6 groups:	[]

Factor #3 - Accuracy, Test Barrel (4" Test Barrel, 1:10" twist at 50 meters).	
Test barrel accuracy groups shall be 10-shot groups fired from 50 meters. If Offeror does not have access to 50m range, please provide group sizes at either 25y or 50y and clearly identify the distance used.	
Group #	Group Size (in.)
Group #1	[]
Group #2	[]
Average Group Size:	[]

Factor #4 - Instrumental Velocity	
Note: Instrumental Velocity requires the extreme spread (fps) from two 10-shot groups.	
Extreme Spread - Group 1:	[] fps
Extreme Spread - Group 2:	[] fps

Factor #5 - Power Factor (fired from a Glock 19M, or similar)	
Average Velocity (20 rounds):	[] fps
Projectile Grain Weight:	[] grains
Power Factor:	[]

Factor #6 - SAAMI Pressure Test (ambient temp.)	
Average Chamber Pressure (10 rounds):	[] psi
Max Chamber Pressure:	[] psi
Maximum Probable Sample Mean	[] psi

Factor #7 - Environmental Pressure Test (+140F / -40F)	
High Temp. - Average Chamber Pressure (10 rounds):	[] psi
High Temp. - Max Chamber Pressure:	[] psi
Low Temp. - Average Chamber Pressure (10 rounds):	[] psi
Low Temp. - Max Chamber Pressure:	[] psi

Factor #9 - Sustained Immersion in Water (fired from Glock 19M or similar)	
Time/duration submerged:	[]
Fired all 20 rounds?	Yes [] No []
Average Velocity (20 rounds, wet)	[] fps
Average Velocity - Dry (from Factor 5)	[] fps
Difference in Average Velocity	[] fps

Phase II, Factors 8, 10, 11, 12, and 13 were intentionally left off this data sheet.

[End of Manufacturer Data Sheet – Service Ammunition]

MANUFACTURER DATA SHEET

Ammunition – 9mm

Training Ammunition

General Information	
Manufacturer:	[]
Address:	[]
Principal Technical Contact:	[]
Telephone:	[]
Email address:	[]
Product name:	[]
Product part number:	[]
Rounds per box:	[]
Rounds per case:	[]
Projectile weight:	[]
Projectile composition:	[]
Sectional Density:	[]
LOT/DAY CODE numbers:	[]
Meaning of characters in LOT/DAY CODE numbers:	[]

Component Compositions		
ITEM	MANUFACTURER	TYPE
Projectile:	[]	[]
Case mouth Sealant (if applicable):	[]	[]
Case:	[]	[]
Primer:	[]	[]
Primer Sealant (if applicable):	[]	[]
Propellant (product name):	[]	[]
Headstamp marking:	[]	
Headstamp meaning:	[]	
Material Safety Data sheets attached:		Yes [] or No []
Production group size (10-rounds) at 50 meters(or yards) from a test barrel:		[0.00] in.

Factor #2 - Accuracy - Glock Barrel	
Note1: The Government will perform this evaluation with a Wiseman fixture. If Offerors do not have access to such a test fixture, Offerors may submit test data fired from a pistol. Accuracy groups shall be 5-shot groups.	
Note 2: If Offeror does not have access to 50m range, please provide group sizes at either 25y or 50y and clearly identify the distance used.	
Group #	Group Size (in.)
Group #1	[]
Group #2	[]
Group #3	[]
Group #4	[]
Group #5	[]
Group #6	[]
Average of 6 groups:	[]

Factor #3 - Accuracy, Test Barrel (4" Test Barrel, 1:10" twist at 50 meters).	
Test barrel accuracy groups shall be 10-shot groups fired from 50 meters. If Offeror does not have access to 50m range, please provide group sizes at either 25y or 50y and clearly identify the distance used.	
Group #	Group Size (in.)
Group #1	[]
Group #2	[]
Average Group Size:	[]

Factor #4 - Instrumental Velocity	
Note: Instrumental Velocity requires the extreme spread (fps) from two 10-shot groups.	
Extreme Spread - Group 1:	[] fps
Extreme Spread - Group 2:	[] fps

Factor #5 - Power Factor (fired from a Glock 19M, or similar)	
Average Velocity (20 rounds):	[] fps
Projectile Grain Weight:	[] grains
Power Factor:	[]

Factor #6 - SAAMI Pressure Test (ambient temp.)	
Average Chamber Pressure (10 rounds):	[] psi
Max Chamber Pressure:	[] psi
Maximum Probable Sample Mean	[] psi

Factor #7 - Environmental Pressure Test (+140F / -40F)	
High Temp. - Average Chamber Pressure (10 rounds):	[] psi
High Temp. - Max Chamber Pressure:	[] psi
Low Temp. - Average Chamber Pressure (10 rounds):	[] psi
Low Temp. - Max Chamber Pressure:	[] psi

Phase II, Factors 1, 8, 9, 10, 11, 12, and 13 were intentionally left off this data sheet.

[End of Manufacturer Data Sheet – Training Ammunition]

MANUFACTURER DATA SHEET

Ammunition – 9mm

Frangible Ammunition

General Information	
Manufacturer:	[]
Address:	[]
Principal Technical Contact:	[]
Telephone:	[]
Email address:	[]
Product name:	[]
Product part number:	[]
Rounds per box:	[]
Rounds per case:	[]
Projectile weight:	[]
Projectile composition:	[]
Sectional Density:	[]
LOT/DAY CODE numbers:	[]
Meaning of characters in LOT/DAY CODE numbers:	[]

Component Compositions		
ITEM	MANUFACTURER	TYPE
Projectile:	[]	[]
Case mouth Sealant (if applicable):	[]	[]
Case:	[]	[]
Primer:	[]	[]
Primer Sealant (if applicable):	[]	[]
Propellant (product name):	[]	[]
Headstamp marking:	[]	
Headstamp meaning:	[]	
Material Safety Data sheets attached:		Yes [] or No []
Production group size (10-rounds) at 50 meters (or yards) from a test barrel:		[0.00] in.

Factor #2 - Accuracy - Glock Barrel	
Note1: The Government will perform this evaluation with a Wiseman fixture. If Offerors do not have access to such a test fixture, Offerors may submit test data fired from a pistol. Accuracy groups shall be 5-shot groups.	
Note 2: If Offeror does not have access to 50m range, please provide group sizes at either 25y or 50y and clearly identify the distance used.	
Group #	Group Size (in.)
Group #1	[]
Group #2	[]
Group #3	[]
Group #4	[]
Group #5	[]
Group #6	[]
Average of 6 groups:	[]

Factor #3 - Accuracy, Test Barrel (4" Test Barrel, 1:10" twist at 50 meters).	
Test barrel accuracy groups shall be 10-shot groups fired from 50 meters. If Offeror does not have access to 50m range, please provide group sizes at either 25y or 50y and clearly identify the distance used.	
Group #	Group Size (in.)
Group #1	[]
Group #2	[]
Average Group Size:	[]

Factor #4 - Instrumental Velocity	
Note: Instrumental Velocity requires the extreme spread (fps) from two 10-shot groups.	
Extreme Spread - Group 1:	[] fps
Extreme Spread - Group 2:	[] fps

Factor #5 - Power Factor (fired from a Glock 19M, or similar)	
Average Velocity (20 rounds):	[] fps
Projectile Grain Weight:	[] grains
Power Factor:	[]

Factor #6 - SAAMI Pressure Test (ambient temp.)	
Average Chamber Pressure (10 rounds):	[] psi
Max Chamber Pressure:	[] psi
Maximum Probable Sample Mean	[] psi

Factor #7 - Environmental Pressure Test (+140F / -40F)	
High Temp. - Average Chamber Pressure (10 rounds):	[] psi
High Temp. - Max Chamber Pressure:	[] psi
Low Temp. - Average Chamber Pressure (10 rounds):	[] psi
Low Temp. - Max Chamber Pressure:	[] psi

Factor #11 - Frangibility (20 rounds onto 3/8" AR500 @ 10')	
Number of perforations on cardboard witness panel:	[] perforations
Depth of dimpling on steel target:	[] inches

Phase II, Factors 1, 8, 9, 10, 12, and 13 were intentionally left off this data sheet.

[End of Manufacturer Data Sheet – Frangible Ammunition]

PART IV – REPRESENTATIONS AND INSTRUCTIONS

SECTION K–REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS

K.1 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (NOV 2025)

(a) *Definitions.* As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceeding at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked “has” in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in—
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management database via <https://www.sam.gov> (see 52.204-7).

(End of provision)

K.2 52.209-12 CERTIFICATION REGARDING TAX MATTERS (OCT 2020)

(a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

(b) If the Offeror is proposing a total contract price that will exceed \$5,500,000 (including option), the Offeror shall certify that, to the best of its knowledge and belief, it—

(1) Has [] filed all Federal tax returns required during the three years preceding the certification;

(2) Has not [] been convicted of a criminal offense under the Internal Revenue Code of 1986; and

(3) Has not [], more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of provision)

[End of Section]

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

L.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The Offeror is cautioned that the listed provisions may include blocks that must be completed by the Offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the Offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address (es):

<https://www.acquisition.gov/far/>

I. FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES

NUMBER	TITLE	DATE
52.212-1	INSTRUCTIONS TO OFFERORS - COMMERCIAL PRODUCTS and COMMERCIAL SERVICES	NOV 2025
52.215-1	INSTRUCTIONS TO OFFERORS – COMPETITIVE ACQUISITION	NOV 2025
52.216-27	SINGLE OR MULTIPLE AWARDS	OCT 1995
52.240-90	SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS	NOV 2025

(End of Provision)

L.2 52.216-1 TYPE OF CONTRACT (NOV 2025)

The Government contemplates award of firm-fixed price, indefinite-delivery indefinite-quantity type contracts resulting from this solicitation.

(End of Provision)

L.3 52.233-2 SERVICE OF PROTEST (NOV 2025)

(a) Protests, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from:

Paul Flood
U.S. Department of Justice
Federal Bureau of Investigation
4942 Fowler Road
Redstone Arsenal, AL 35898

(b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

L.4 JAR 2852.233-70 PROTESTS FILED DIRECTLY WITH THE DEPARTMENT OF JUSTICE (NOV 2020)

(a) The following definitions apply in this provision:

- (1) "Agency Protest Official" means the Deciding Official for a procurement protest filed with a contracting activity of DOJ when the contracting officer will not be the Deciding Official because of the protestor's election under JAR 2833.103(b)
- (2) "Deciding Official" means the official who will review and decide a procurement protest filed with the agency. The Deciding Official will be the contracting officer unless the protestor requests pursuant to JAR 2833.103(b) that the protest be decided by an individual above the level of the contracting officer, in which case the HCA will designate an APO to serve as the Deciding Official.
- (3) "Interested Party" means an actual or prospective Offeror whose direct economic interest would be affected by the award of a contract or by the failure to award a contract.

(b) Only interested parties may file a protest.

(c) An interested party filing a protest with the Department of Justice has the choice of requesting either that the Contracting Officer or the Agency Protest Official decide the protest.

(d) A protest filed directly with the Department of Justice shall:

- (1) Indicate that it is a protest to DOJ.
- (2) Be filed with the Contracting Officer.
- (3) State whether the protestor chooses to have the Contracting Officer or the Agency Protest Official decide the protest. If the protestor is silent on this matter, the Contracting Officer will decide the protest.
- (4) Indicate whether the protestor prefers to make an oral or written presentation of arguments in support of the protest to the deciding official.
- (5) Include the information required by FAR 33.104-4(a)(3):
 - (i) Name, email address, and telephone number of the protestor
 - (ii) Solicitation or contract number.
 - (iii) Detailed statement of the legal and factual grounds for the protest, including a description of resulting prejudice to the protestor.
 - (iv) Copies of relevant documents.
 - (v) Request for a ruling by the agency.
 - (vi) Statement as to the form of relief requested.
 - (vii) All information establishing that the protestor is an interested party for the purpose of filing a protest.

(viii) All information establishing the timeliness of the protest.

(e) The decision by the Agency Protest Official is an alternative to a decision by the Contracting Officer. The Agency Protest Official will not consider appeals from the Contracting Officer's decision on an agency protest.

(f) The Deciding Official may conduct a scheduling conference. The scheduling conference, if conducted, will establish deadlines for oral or written arguments in support of the agency protest and for agency officials to present information in response to the protest issues. The deciding official may hear oral arguments in support of the agency protest at the same time as the scheduling conference, depending on availability of the necessary parties.

(g) Oral conferences may take place either by telephone or in person

(h) The protestor has only one opportunity to support or explain the substance of its protest. DOJ procedures do not provide for any discovery. The deciding official may request additional information from the agency or the protestor. The deciding official will resolve the protest through informal presentations or meetings to the maximum extent practicable.

(i) A protestor may represent itself or be represented by legal counsel. The DOJ will not reimburse the protestor for any legal fees related to the agency protest.

(j) The DOJ will stay award or suspend contract performance in accordance with FAR 33.104-2(b), unless the contract award is justified, in writing, for urgent and compelling reasons or is determined, in writing, to be in the best interest of the Government. The justification or determination shall be approved at a level above the Contracting Officer. The stay or suspension, unless over-ridden, remains in effect until the protest is decided, dismissed, or withdrawn.

(k) The deciding official will make a best effort to issue a decision on the protest within thirty-five (35) days after the filing date. The decision shall be written and provided to the protestor using a method that provides for evidence of receipt.

(l) The DOJ may dismiss or stay proceedings on an agency protest if a protest on the same or similar basis is filed with a forum outside DOJ.

(End of Provision)

L.5 GENERAL INSTRUCTIONS FOR PREPARING PROPOSALS

All submissions shall meet the applicable requirements of the Statement of Work (Section C) and the Evaluation requirements (Section M).

A complete proposal shall consist of the following four (4) volumes:

- Volume #1: Technical Proposal
- Volume #2: Price Proposal
- Volume #3: Past Performance
- Volume #4: Ammunition Samples

Volumes 1-3 shall be written on a stand-alone basis so that their contents may be evaluated without cross-referencing other Volumes of the Proposal. Information required for the Proposal evaluation but not found in its designated Volume will be assumed as omitted from the Proposal.

An Offeror's proposal shall provide full, accurate, and complete information to facilitate a thorough and timely evaluation.

Note: The Government will not reimburse Offerors for expenses related to this solicitation.

Limit on number of submissions

- In the category of **Service**, Offerors are limited to no more than two (2) submissions for consideration. If an Offeror provides two (2) **Service** submissions, the projectile in each submission must be substantially different.²⁰
- In the categories of **Training** and **Frangible**, Offerors are limited to one (1) submission in each category.

Offerors are not required to submit in each of the three (3) ammunition categories. Offerors may submit in one, two, or all three categories.

L.6 PROPOSAL PREPARATION INSTRUCTIONS: VOLUME #1 TECHNICAL PROPOSAL

The following requirements for Volume #1 Technical Proposal are consistent with Section J, Attachment 3, Manufacturer's Checklist.

The Offeror shall prepare Volume 1 – Technical Proposal in sufficient detail to demonstrate a clear understanding of the requirements and to provide evidence of the Offeror's capability to manufacture and deliver the ammunition described in this solicitation. The content of this volume shall, at a minimum, address and/or provide verification of the items listed below.

The Technical Proposal shall include the following:

1. Company background
A concise description of the Offeror's corporate history. This may include organizational structure, years of experience in ammunition manufacturing, and any relevant certifications or accreditations.
2. List of key personnel and relevant expertise
A list of key personnel responsible for ammunition design, production, quality assurance, and testing. Include summaries of relevant qualifications, experience, and areas of expertise.
3. Information on cartridge design
A detailed description of the design characteristics of each ammunition type offered, including materials, components, performance, and any unique design features.

²⁰ For the purposes of this solicitation, substantially different may include, but is not limited to, design differences such as projectile weight, jacket thickness, projectile construction, core differences, bonded vs. monolithic. The same projectile submitted in different velocity ranges will not be accepted.

4. Information on manufacturing facilities including:

- Production capacity and throughput
- Quality control systems and processes

5. Description of product warranty

A description of the warranty terms applicable to the ammunition, including coverage, duration, and procedures for addressing defects or performance issues.

6. Manufacturer data sheets (completed by the Offeror, see Section J, Attachment #4)

Completed Manufacturer Data Sheets for each ammunition type submitted, in accordance with Section J, Attachment 4.

7. Documentation of pressure test results for SAAMI pressure testing.

The Offeror shall provide pressure test data for **10 rounds**, conducted in accordance with SAAMI standards at ambient temperature. Data shall include, at a minimum:

- Muzzle velocity for each shot
- Peak pressure²¹ for each shot
- Maximum Average Pressure (MAP)
- Maximum Probable Sample Mean (MPSM)

8. Documentation of Environmental Pressure Test results (i.e., High Temperature and Low Temperature pressure tests).

The Offeror shall provide pressure test data for **10 rounds at high temperature** and **10 rounds at low temperature**, in accordance with the procedures described in **Phase II, Factor 5 – Environmental Pressure**. Data shall include:

- Muzzle velocity for each shot
- Peak pressure for each shot
- Maximum Average Pressure (MAP)
- Maximum Probable Sample Mean (MPSM)

9. Material Safety Data sheets for each ammunition submission

L.7 PROPOSAL PREPARATION INSTRUCTIONS: VOLUME #2 PRICE PROPOSAL AND OTHER DOCUMENTS

The price proposal volume consists of the actual offer to enter into a contract to perform the desired work/provide the required products. It also includes other information such as required representations and certifications, other statements made by the Offeror, and any other administrative information.

Pricing shall be submitted using the price matrix sheet provided under Section J; Attachment 1. No other pricing format, form, or notations will be accepted. No incomplete/partial quotes will be accepted.

²¹ All pressure values shall be reported in psi.

The following documents should be completed and included with the price proposal volume:

- 1) Signed Cover Page (provided with prospective Offeror letter) by an individual authorized to bind the organization.
- 2) Certification of an active registration in the System for Award Management (SAM) database.
- 3) Certification regarding tax matters, refer to K.2.
- 4) Signed original of an Amendment to the solicitation, if applicable.
- 5) The following price matrix for volume 2 (Price Proposal) is consistent with section J, Attachment 1.

CLIN	Product Description	Base Year	Option Year 1	Option Year 2	Option Year 3	Option Year 4	52.217-9 6-month Extension
001	Service Ammunition 9mm	[]/round []/case	[]/round []/case	[]/round []/case	[]/round []/case	[]/round []/case	[]/round []/case
002	Training Ammunition 9mm	[]/round []/case	[]/round []/case	[]/round []/case	[]/round []/case	[]/round []/case	[]/round []/case
003	Frangible Ammunition 9mm	[]/round []/case	[]/round []/case	[]/round []/case	[]/round []/case	[]/round []/case	[]/round []/case

L.8 PROPOSAL PREPARATION INSTRUCTIONS: VOLUME #3 PAST PERFORMANCE

The past performance proposal serves to share information regarding the quality of an Offeror's past performance and the extent of an Offeror's experience performing the required work. The Offeror shall forward a copy of the past performance questionnaire, located in Section J, Attachment 2, to three (3) references.

References should be associated with either current contracts or contracts performed within the past three (3) years that are similar to this requirement in scope, size, and complexity. If possible, references should come from the law enforcement community. Do not forward questionnaires to FBI personnel; internal performance reports are accessible to evaluators.

Clear instructions shall be provided to the references requesting the completed form be sent directly to the attention of the Contracting Officer. It is imperative that the references have the past performance questionnaire completed and returned by the proposal deadline. The completed questionnaires may be returned **electronically**.

Point of contact information:

Kayla Haley
Contracting Officer
Federal Bureau of Investigation
Email: knhaley@fbi.gov

The Offeror shall provide in its proposal a list of references that were requested to respond to the past performance questionnaire along with point of contact information (name, email address, phone number). The Contracting Officer will make one attempt to contact the

reference(s) that did not return the past performance questionnaire by the deadline. Ratings on past performance can only be given on the responses received. An Offeror without any past performance information will receive a neutral rating.

The Government reserves the right to consider any past performance information, above and beyond what the offeror supplies in Volume 3, if those efforts performed for other agencies of the Federal, state, or local governments as well as commercial customers is deemed relevant. The assessment of past performance will be used as one means of evaluating the credibility of the Offeror's technical proposal. A record of marginal and unacceptable past performance may be considered an indication that the current offer may be less than reliable and pose a high risk to the Government. Such an indication may be reflected in the Government's overall best value assessment of the Offeror's proposal.

L.9 PROPOSAL PREPARATION INSTRUCTIONS: VOLUME #4 AMMUNITION SAMPLES

Prior to the proposal deadline documented in Section L.10, Offerors shall provide 2,000 rounds per submission.²² The Government prefers that the initial submission of sample ammunition be from a single lot and/or day code.²³

Offerors who advance to Phase III evaluations are required to submit additional rounds for testing. Offerors will receive notification from the Contracting Officer of advancement to Phase III. Submissions advancing to Phase III evaluations in the categories of **Service** and/or **Training** will be required to provide an additional 10,000 rounds. Submissions advancing to Phase III testing in the category of **Frangible** will be required to provide an additional 5,000 rounds.

DESTRUCTIVE TESTING OF SAMPLES: The Government intends to utilize or consume the above-noted samples in testing outlined in Section M. Sample ammunition will not be returned to Offerors.

L.10 INSTRUCTIONS FOR SUBMISSION OF PROPOSALS

Proposals shall be submitted in accordance with FAR 52.212-1, Instructions to Offerors – Commercial Products and Commercial Services (Nov 2025) and the instructions listed in Section L of this solicitation.

Volume 1 (Technical Proposal), Volume 2 (Price Proposal), and Volume 3 (Past Performance Proposal), shall be submitted electronically to Kayla Haley, FBI Contracting Officer at knhaley@fbi.gov.

Volume 4 (Ammunition Samples) shall be shipped via a postal delivery service or courier. **Hand deliveries will not be accepted.** Samples shall be addressed as follows:

Federal Bureau of Investigation
Ballistic Research Facility

²² The Government requires 2,000 rounds of ammunition for each category of ammunition submitted (e.g., Service, Training and Frangible). If the Offeror is submitting two (2) separate Service samples for consideration, the Government requires 2,000 rounds of each submitted sample.

²³ The Government understands that there is no uniform standard for day/lot codes and that some manufacturers may change day/lot codes without changing ammunition components.

Attn.: Patrick M. Boone
4942 FOWLER ROAD
BUILDING #6315
REDSTONE ARSENAL, AL 35898
RFP-15F06726R0000146

Proposals must be received by 5:00 PM/CT on Tuesday July 14, 2026.

Questions regarding this solicitation shall be submitted in writing, via e-mail, to the attention of Kayla Haley, FBI Contracting Officer at knhaley@fbi.gov.

Questions pertaining to the solicitation are due by 1:00 PM/CT on Thursday June 11, 2026.

[End of Section]

SECTION M – EVALUATION FACTORS FOR AWARD

M.1 52.212-2 EVALUATION – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2025)

(a) Evaluation factors. The Government will award up to three (3) IDIQ contracts resulting from this solicitation to the responsible Offeror(s) whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered.

The contract award(s) resulting from this solicitation will be made using a best value tradeoff process in accordance with FAR 15.101-1. The Government will evaluate proposals and make award(s) to the responsible Offeror or Offerors whose proposals provide the greatest value to the Government. Technical performance, price, and past performance will be considered. The Government may make award(s) to an Offeror other than the highest technically rated or other than the lowest price. The Government reserves the right to make award(s) to the Offeror(s) whose proposal provides the best value to the Government considering the evaluation criteria set forth in this solicitation.

In the category of **Service**, the technical performance evaluation is more important than price, and price is more important than past performance.

In the categories of **Training** and **Frangible**, the technical performance evaluation is approximately equal to price. Technical and price are more important than past performance.

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options shall not oblige the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer, furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

M.2 52.217-5 EVALUATION OF OPTIONS (NOV 2025)

Except when it is determined in accordance with FAR 17.202(b) not to be in the Government's best interest, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of Provision)

M.3 EVALUATION CRITERIA

M.3.1 Evaluation of Price

The prices entered in the Offeror's proposal Price Matrix (Section J, Attachment 1) shall be the basis of evaluation. Pricing will be reviewed to ensure price reasonableness within industry standards. The Government will evaluate price proposals for completeness to ensure all required line items are priced or marked 'no bid' as applicable. The Government may reject a proposal if it determines that the pricing is materially unbalanced. Offerors will be evaluated only on the line items for which they submit pricing.

Price Reasonableness

The Government will assess reasonableness using:

- Comparison to other competitive proposals
- Comparison to independent Government estimates

Offerors are not required to submit in each of the ammunition categories. An Offer that does not include all line items shall clearly be marked on the price matrix with "no bid" for those line items. Line items left blank may be viewed as "Non Responsive."

In addition to this price reasonableness evaluation, price is a factor considered by the Contracting Officer when deciding which offer is the most advantageous to the Government. For more details see Section M.1.

M.3.2 Past Performance (Pass/Fail or Neutral Rating)

Past Performance will be evaluated to determine if the Offeror has demonstrated experience in managing three (3) contracts in the past three (3) years similar in scope, magnitude, or complexity of this effort.

The Government will evaluate past performance of the Offeror. The Government will consider the recency and relevance of the information, context of the data and general trends in contractor performance. Each Offeror will be rated on its own performance, if relevant.

The Government reserves the right to use past performance information obtained from sources other than those identified by the Offeror.

If the Government does not obtain past performance information and cannot establish a past performance record for the offeror through other sources, past performance will be rated neither favorably nor unfavorably. If this is the case, then the past performance factor will be considered "neutral".

Definitions for the ratings are as follows:

As outlined in Section L.10, ammunition deliveries shall be to the FBI's Ballistic Research Facility at the previously documented address on Redstone Arsenal.

The Government requires that all ammunition submitted in response to this solicitation is produced on the commercial production equipment the same or similar to which would be used to produce future ammunition orders, if awarded a contract.

Note: FBI test data of the awarded Service submission will be placed into the standard FBI ammunition test database and disseminated according to current dissemination rules.

M.3.4 PHASE I

1. Technical Proposal – (Pass/Fail)

Data submitted for Volume #1 Technical Proposal must be complete. Section L.6 of this solicitation documents a checklist of required data for the Technical Proposal.

The Technical Evaluation Board (TEB) will review the information provided by the Offeror and ensure that all required items listed in Section L.6 are present.

This event is scored as “pass” or “fail.” Any submission that fails to meet these requirements may be eliminated from further consideration.

2. Compliance with Requirements outlined in Section C - Statement of Work

Members of the Technical Evaluation Board (“TEB”) shall review Volume #1 Technical Proposal and Volume #4 Ammunition Samples to ensure that the submission meets the requirements outlined in Section C – Statement of Work.

This compliance review will include an inspection to ensure that sample ammunition meets the SAAMI dimensional specifications. The TEB will randomly select 100 cartridges and physically inspect them for compliance. If any of the randomly selected 100 cartridges is found to be out of SAAMI dimensional specification, the proposal will be eliminated from further consideration.

This event is scored as “pass” or “fail.” Any submission that fails to meet these requirements may be eliminated from further consideration.

(END PHASE I EVALUATION)

[illegible]

M.3.5 PHASE II

Quantitative Evaluations

Phase II consists of the following assessments:

Factor 1 – Terminal Performance (service only)
Factor 2 – Accuracy, Glock Barrel (all categories)
Factor 3 – Accuracy, Test Barrel (all categories)

Factor 4 – Instrumental Velocity (all categories)
Factor 5 – Power Factor (all categories)
Factor 6 – SAAMI Pressure (all categories)
Factor 7 – Environmental Pressure (all categories)
Factor 8 – Muzzle Flash (service only)
Factor 9 – Sustained Immersion in Water (service only)
Factor 10 – Cleanliness - Cartridge and Test Barrel (all categories)
Factor 11 – Frangibility (frangible only)
Factor 12 – Ammunition Malfunctions (all categories)
Factor 13 – Ammunition Defects (all categories)

Some of the assessments are graded as Pass/Fail and some assessments offer the potential for Offerors to score points. Any submission which receives a “Fail” during Phase II evaluations will be eliminated from further consideration. Details of each assessment are as follows:

1. Terminal Performance – (service only)

Possible Points: 500

Service ammunition will undergo a terminal performance assessment utilizing ballistic gelatin. The purpose of the assessment is to evaluate the terminal performance of sample **Service** ammunition by measuring the depth of penetration, consistency of depth of penetration, retained bullet weight, and expansion.

Each **Service** submission will undergo the terminal performance assessment three (3) times. The three (3) assessments will be conducted with three (3) different test weapons. Those test weapons are as follows:

- Test Weapon #1 – Glock 17M Gen5 MOS with a nominal 4.49” barrel, 1:10 twist
- Test Weapon #2 – Glock 19M Gen5 MOS with a nominal 4.02” barrel, 1:10 twist
- Test Weapon #3 – Glock 43X MOS with a nominal 3.41” barrel, 1:10 twist

The test media used by the FBI is nominal 10 percent ballistic gelatin²⁶, mixed by weight (e.g., one pound of gelatin to nine pounds of water). The FBI uses the term “nominal” to describe the percentage of gelatin because gelatin powder has been shown to have slight variances from lot to lot. For consistency across terminal performance testing, all gelatin blocks must be validated prior to testing.

The validation process consists of firing a .177 caliber steel sphere (BB) into the gelatin block at 590 feet per second (fps) +/- 15 fps. This sphere must penetrate the gelatin block a minimum of 2.95 inches but no more than 3.74 inches. The FBI only utilizes validated gelatin blocks for testing.

The gelatin blocks are stored at approximately 4° Centigrade (C) (39° F). The gelatin blocks will remain in temperature-controlled storage until validation. Following validation, they will be returned to temperature-controlled storage until immediately before testing.

Each terminal performance assessment consists of six (6) test events. Those test events are:

²⁶ For this solicitation, the FBI will utilize 250 bloom, 40 mesh, pigskin gelatin from Great Lakes Wellness, 263 Commerce Drive, Grayslake, IL 60030.

Bare Gelatin, Heavy Clothing; Steel; Wallboard; Plywood; and Automobile Glass. Each of these test events consists of five (5) test shots.^{27,28} Each Terminal Performance assessment consists of firing a minimum of thirty (30) test shots. For each test shot, the FBI will measure the depth of penetration, the weight of the projectile, and the expansion of the projectile.

Penetration – the penetration of each test shot is measured to the nearest 0.25-inch increment using the most substantial piece of projectile achieving the deepest penetration.²⁹

Retained weight – the most substantial piece of the projectile, which achieved the deepest penetration into the gelatin block will be recovered and weighed.

Expansion - the most substantial piece of the projectile, which achieved the deepest penetration into the gelatin block will be measured for an average width at/near the deformed nose of the projectile. Multiple width measurements will be taken across the projectile's longitudinal axis,³⁰ around which the projectile spins. Utilizing the largest and smallest of those width measurements, an Average Bullet Expansion figure will be calculated for each test shot.

Details of the six (6) test events are listed below:

Terminal Performance Test Events - The "FBI PROTOCOLS"

Test Event 1 - Bare Gelatin: The gelatin block is bare and is shot at a range of ten (10) feet, measured from the muzzle to the front of the block.

Test Event 2 - Heavy Clothing: The gelatin block is covered with four layers of clothing: one layer of t-shirt material; one layer of dress shirt material; one layer of Polartec 200 and one layer of denim. The block is shot at ten (10) feet, measured from the muzzle to the front of the block.

Test Event 3 - Steel: Two (2) six-inch square pieces of 20-gauge galvanized cold rolled steel are set three inches apart (representing an automobile door). The gelatin block is covered in light clothing.³¹ The rear most piece of steel is placed eighteen (18) inches in front of the gelatin block. The shot is made at a distance of ten (10) feet, measured from the muzzle to the front of the block of gelatin.

Test Event 4 - Wallboard: Two (2) six-inch square pieces of nominal 0.5-inch gypsum board are set 3.5 inches apart. The gelatin block is covered with light clothing. The rear most piece of wallboard is placed eighteen (18) inches in front of the gelatin block. The shot is made at ten

²⁷ For each test event, the FBI requires that five (5) test shots be captured in the ballistic gelatin. Test shots that exit the ballistic gelatin will not be measured for penetration, expansion, and retained weight. Test shots in which the projectile exits the gelatin block(s) will be re-shot and will not adversely affect the score of the test sample. However, no more than ten (10) test shots will be allowed in any individual test event.

²⁸ If a test shot is defeated by or slowed by intervening barriers such that the projectile fails to penetrate the ballistic gelatin, the test shot will be recorded as 0.00 for penetration, expansion, and retained weight.

²⁹ The penetration measurement will include "rebound," if present. Due to the elastic nature of ballistic gelatin, a test projectile may "rebound" or retract back away from the point of deepest penetration. After a test shot, the bullet path of the projectile is visible in the gelatin block. If the bullet path is visible beyond the resting projectile, the penetration measurement will be taken from the point of deepest penetration.

³⁰ The axis running from the bullet's base to tip.

³¹ For the purposes of this solicitation, "light clothing" indicates the use of one layer of the above-described t-shirt material and one layer of the above-described dress shirt material.

(10) feet, measured from the muzzle to the front of the block of gelatin.

Test Event 5 - Plywood: One (1) six-inch square piece of nominal 23/32-inch sanded pine plywood is used. The gelatin block is covered with light clothing. The rear surface of the plywood is placed eighteen (18) inches in front of the gelatin block. The shot is made at ten (10) feet, measured from the muzzle to the front of the block of gelatin.

Test Event 6 - Automobile Glass: One (1) piece of A.S.1, nominal 0.25-inch, laminated automobile safety glass (approximately 15" x 18" in size) is set at an angle of 45 degrees away from the weapon and 15 degrees away from the line of the weapon, resulting in a compound angle of impact for the bullet into the glass. The gelatin block is covered with light clothing. The automobile glass, as measured from the expected impact location, is placed eighteen (18) inches in front of the gelatin block. The shot is made at ten (10) feet, measured from the muzzle to the front of the block of gelatin.

Barrier Materials

The following barrier materials will be used for this assessment:³²

- 1) T-shirt material - Sew Classic Knit Interlock Fabric Solid (item # 8043382), purchased from JoAnn Fabric.
- 2) Dress shirt material - Symphony Broadcloth Polyester Blend Fabric (item # 636373), purchased from JoAnn Fabric.
- 3) Polartec insulation - Polartec 200 Series, Fabric Style 7614, purchased from Mill Direct Textiles, www.milldirecttextiles.com.
- 4) Denim - Lucky Brand 12oz Blue Textured Denim Fabric (item# 1287929), purchased from JoAnn Fabric.
- 5) Gypsum board - Ultralight 1/2" x 4' x 8' gypsum board, USG Sheetrock (item #14113411708), purchased from The Home Depot, www.homedepot.com.
- 6) Plywood - 23/32" x 4' x 8' BC Sanded Pine Plywood (item #166057), purchased from The Home Depot, www.homedepot.com.
- 7) Sheet metal - 20 gauge (.036"), Galvanized Steel, Cold Rolled and Annealed, 2B Finish. Purchased from Speedy Metals – Milwaukee, 2505 South 162nd Street, New Berlin, WI 53151, telephone (262) 784-4140, www.speedymetals.com.
- 8) Automobile windshield glass - 15" x 18" panels of 1/4" laminated A.S.1 safety glass. Purchased from Isoclima Specialty Glass LLC, 500 Grant Ave, Suite 201, East Butler, PA 16029

Terminal Performance Assessment Calculations

A. Depth of Penetration

Utilizing all thirty (30) test shots, an Average Penetration and Standard Deviation will be calculated. The Average Penetration will be assigned a "score" based on the table below:

³² The FBI is not endorsing any vendor or product. The Government is aware that one or more of the listed vendors may no longer be in business. This list is provided to inform Offerors of the test materials that will be used in testing.

Average Penetration (in.)	Score
≥ 18.01	0
17.00 – 18.00	225
14.00 – 16.99	250
13.00 – 13.99	200
12.00 – 12.99	150
≤ 11.99	0

The Standard Deviation will be assigned a “multiplier” based on the table below:

Standard Deviation (in.)	Multiplier
0 - 0.50	1
0.51 - 1.00	0.9
1.01 - 1.50	0.8
1.51 - 2.00	0.7
2.01 - 2.50	0.6
2.51 - 3.00	0.5
3.01 - 3.50	0.4
3.51 - 4.00	0.3
4.01 - 4.50	0.2
≥ 4.51	0.1

The “score” from the Average Penetration will be multiplied by the “multiplier” from the Standard Deviation. This resulting figure represents the score for the depth of penetration portion of the FBI protocols.

B. Retained Weight - Projectiles from five (5) unfired cartridges will be pulled and weighed. The Average Projectile Weight will be calculated from those five (5) unfired projectiles. Utilizing all thirty (30) test shots, an Average Retained Weight from the recovered projectiles will be calculated. The Average Retained Weight will be divided by the Average Projectile Weight to calculate the Retained Weight Percentage.

The calculated Retained Weight Percentage will be assigned a score based on the following table:

Retained Weight (%)	Score
98.0 – 100	50
96.0 – 97.9	45
94.0 – 95.9	40
92.0 – 93.9	35
90.0 – 91.9	30
88.0 – 89.9	15
86.0 – 87.9	10
84.0 – 85.9	5
82.0 – 83.9	1

≤ 81.9	0
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C. Expansion - The average expansion of each of the 30 test shots will be measured. The Overall Average Bullet Expansion will be calculated from the thirty (30) individual average expansion measurements. The calculated Overall Average Bullet Expansion will be assigned a score based on the following table:

Overall Average Bullet Expansion (in.)	Score
≥ 0.600	100
0.570 – 0.599	95
0.540 – 0.569	90
0.510 – 0.539	85
0.480 – 0.509	80
0.450 – 0.479	75
0.420 – 0.449	50
≤ 0.419	0

D. Shots < 12.0" - From the 30 test shots, the number of shots with less than 12 inches of penetration will be counted. The number of shots less than 12.0" will be assigned a score based on the following table:

Number of Shots < 12.0"	Score
0	100
1	80
2	60
3	20
4	10
5	5
6	0
≥ 7	- 50

The scores assigned for Depth of Penetration, Retained Weight, Expansion, and Shots < 12.0" will be combined for the "FBI Protocol Score."

Example: Sample "Cartridge A" performed as follows for the above-described FBI Protocol test.

- A. Average penetration = 15.8" (scores 250)
Standard Deviation = 1.49 (multiplier 0.8)
- B. Retained Weight = 93% (scores 35)
- C. Average Expansion = 0.491" (scores 80)
- D. Shots < 12.0" = 1 (scores 80)

Calculation:

- A. Penetration: (250 score x 0.8 multiplier) = 200
- B. Retained Weight: = 35

- C. Avg. Expansion: = 80
D. Shots < 12.0": = 80
FBI Protocol Score 395

Overall Terminal Performance Assessment Score – As noted previously, the above-described FBI Protocol Test will be conducted three (3) times for each **Service** ammunition submission. Each of the three (3) FBI Protocol Tests will be conducted with a different test weapon. Notably, each of the three (3) different test weapons have a different barrel length. For the purposes of this solicitation, the Overall Terminal Performance Assessment Score for a submission will be calculated using the scores from the three (3) FBI Protocol Tests. The scores will be weighted as follows:

FBI Protocol Score 1 (Test Weapon 1, Glock 17, 4.49" barrel)	25%
FBI Protocol Score 2 (Test Weapon 2, Glock 19, 4.02" barrel)	50%
FBI Protocol Score 3 (Test Weapon 3, Glock 43X, 3.41" barrel)	25%
	<u>100%</u>

The following is an example of how the Overall Terminal Performance Assessment Score is calculated:

	Score	Weighted %	Points
FBI Protocol Score 1 (4.49" barrel)	395	25%	98.75
FBI Protocol Score 2 (4.02" barrel)	350	50%	175
FBI Protocol Score 3 (3.41" barrel)	270	25%	67.5
Terminal Performance Assessment Score			341.25

2. Accuracy, Glock Barrel (all categories)

Possible Points: 150

Thirty (30) rounds from each submission will be selected. The barrel from a Glock 19M Gen5 MOS pistol will be secured in a test fixture.³³ Six (6) 5-shot groups will be fired at a paper target³⁴ from the fixture-mounted Glock barrel. These six (6) groups will be the Accuracy Groups.

Service and Training: Accuracy, Glock Barrel groups will be fired at 50 meters.

Frangible: Accuracy, Glock Barrel groups will be fired at 25 meters.

The paper targets from the six (6) Accuracy Groups will be measured for extreme spread by determining the distance between the two most widely spaced bullet holes, measured from center-to-center in hundredths of an inch. The measured extreme spread of each Accuracy Group is the Group Size for that particular group.

The six (6) Group Sizes will be averaged. This is the Average Glock Barrel Group Size for the submission. Points will be assigned based on the Average Glock Barrel Group Size in accordance with the following table:

³³ The test fixture is a Wiseman Glock Barrel Precision Fixture.

³⁴ Each of the six (6) Accuracy Groups will be fired at a new/clean target. For the purposes of this solicitation, paper targets may be a cardboard target or a paper target.

Average Glock Barrel Group Size (in.)	Points
≤ 1.00	150
1.01 – 1.50	125
1.51 – 2.00	100
2.01 – 2.50	75
2.51 – 3.00	50
3.01 – 3.50	20
3.51 – 4.00	10
≥ 4.01	eliminated

Any submission with an Average Glock Barrel Group Size greater than **4.00 inches** will have failed and the submission will be eliminated from further consideration.

3. Accuracy, Test Barrel (all categories)

Possible Points: 50

The Accuracy, Test Barrel assessment may be conducted contemporaneously with the Instrumental Velocity assessment.

Twenty (20) rounds from each submission will be selected. A test barrel³⁵ will be secured in a Test Barrel Fixture.³⁶ Two (2) 10-shot groups will be fired from the test barrel at a paper target.³⁷

Service and Training: Accuracy, Test Barrel groups will be fired at 50 meters.

Frangible: Accuracy, Test Barrel groups will be fired at 25 meters.

The paper targets from the two (2) 10-shot groups will be measured for extreme spread by determining the distance between the two most widely spaced bullet holes, measured from center-to-center in hundredths of an inch. The measured extreme spread is the Group Size for that 10-shot group. The Groups Size will be measured for both 10-shot groups.

The two (2) Group Sizes will be averaged. This is the Average Test Barrel Group Size for the submission. Points will be assigned based on the Average Test Barrel Group Size in accordance with the following table:

Average Test Barrel Group Size (in.)	Points
≤ 1.00	50
1.01 – 1.50	45
1.51 – 2.00	40
2.01 – 2.50	35

³⁵ Test barrel is a 4-inch “heavy barrel” with a 1.25” diameter, a SAAMI 9mm Luger chamber, and a 1:10 twist rate.

³⁶ The test barrel fixture consists of a free-recoiling metal plate attached to two parallel, round, machined steel bars, which are bolted to a permanent concrete inertia mass. The test barrel is captured within the test barrel fixture with a Delrin sleeve.

³⁷ Each 10-shot group will be fired at a new/clean target. For the purposes of this solicitation, paper targets may be a cardboard target or a paper target.

2.51 – 3.00	20
3.01 – 3.50	10
3.51 – 4.00	0
≥ 4.01	eliminated

Any submission with an Average Test Barrel Group Size greater than **4.00 inches** will have failed and the submission will be eliminated from further consideration.

4. Instrumental Velocity (all categories)

Total Possible: 80

The Instrumental Velocity assessment may be conducted contemporaneously with the Accuracy, Test Barrel assessment.

Twenty (20) rounds from each submission will be selected. A test barrel will be secured in a Test Barrel Fixture.³⁸ Two (2) 10-shot groups will be fired from the test barrel. A ballistic chronograph will be utilized to capture velocity from each shot.

From each 10-shot group, the highest velocity and lowest velocity test shots will be identified, and an extreme spread will be calculated. The extreme spread for that 10-shot group is the difference between the highest and lowest velocity test shots recorded.

The two (2) calculated extreme spreads (one for each of the two 10-shot groups) will be averaged. This will be the Average Extreme Spread for the submission.

Points will be assigned based on the calculated Average Extreme Spread in accordance with the following table:

Average Extreme Spread (fps)	Points
≤ 25	80
26 - 40	60
41 - 55	40
56 – 70	10
71 – 100	5
≥ 101	0

5. Power Factor (all categories)

(Pass/Fail)

Twenty-five (25) rounds from each submission will be selected.

Twenty (20) rounds will be fired from a Glock 19M Gen5 MOS. Velocities of the 20 rounds will be recorded using a ballistic chronograph. The average velocity of the twenty (20) rounds will be calculated. This is the sample's Average Velocity.

³⁸ The test barrel and test fixture have been previously identified in the Accuracy, Test Barrel assessment.

The projectiles from five (5) cartridges from each submission will be pulled³⁹ from their cartridge and weighed. The average weight of the five (5) pulled projectiles will be calculated. This is the sample's Average Weight.

Power factor will be calculated as the Average Weight (measured in grains) multiplied by the Average Velocity (measured in feet per second), then the product is divided by 1,000.

Example: "Cartridge A" has an average weight of 146.5 grains and an average velocity of 980 feet per second (fps). The power factor for "Cartridge A" would be calculated as:

$$\text{Power Factor} = (146.5 \times 980) / 1,000$$

$$\text{Power Factor} = 143.57$$

Any submission with a power factor below **125.00** or above **150.00** will have failed and the submission will be eliminated from further consideration.

Power Factor	Result
< 125.00	Fail
125.00 - 150.00	Pass
> 150.00	Fail

6. SAAMI Pressure (all categories)

(Pass/Fail)

The Government will review the Offeror-provided pressure test data.

The chamber pressure for ten (10) rounds will be evaluated to determine if the submission is compliant with SAAMI performance standards for pressure.⁴⁰ Maximum Probable Sample Mean shall not exceed 41,500 pounds per square inch (PSI). Furthermore, no single round shall exceed 46,800 PSI (90% of the Minimum Average Pressure Value of Proof Cartridges of 52,000 PSI).

Maximum Probable Samples Mean (PSI)	Points
≤ 41,500	Pass
> 41,500	Fail

Failure to meet the SAAMI Pressure standards will result in failure and the submission will be eliminated from further consideration.

7. Environmental Pressure (all categories)

(Pass/Fail)

The government will review the Offeror-provided environmental pressure test data that was performed following exposure to extreme temperatures.

³⁹ The Government intends to pull projectiles with a kinetic bullet puller.

⁴⁰ The FBI reserves the right to have an independent third-party facility execute pressure testing to ensure compliance with the requirements set forth in Phase II, Factors 6 and 7.

For each submission, the chamber pressure for ten (10) rounds for each temperature extreme (e.g., high temperature exposure and low temperature exposure) will be evaluated to determine if the submission is compliant with the requirement that no single round shall exceed 46,800 PSI.

- A. High temperature exposure: Included within Volume 1 – Technical Proposal, Offerors shall provide pressure test results for ten (10) rounds. Pressure testing procedures shall be conducted in accordance with SAAMI, except for the temperature and soak duration. Rounds shall be heated in an environmental chamber at 140° Fahrenheit (F) for a period of no less than 5 hours and no longer than 8 hours. Once removed from the environmental chamber, rounds shall be fired immediately, and the pressures recorded.
- B. Low temperature exposure: Included within Volume 1 – Technical Proposal, Offerors shall provide pressure test results for ten (10) rounds. Pressure testing procedures shall be conducted in accordance with SAAMI, except for the temperature and soak duration. Rounds shall be cooled in an environmental chamber at negative (-) 40° F for a period of no less than 5 hours and no longer than 8 hours. Once removed from the environmental chamber, rounds shall be fired immediately, and the pressures recorded.

If any individual round has pressure that exceeds 46,800 PSI, the submission will have failed, and the submission will be eliminated from further consideration.

8. Muzzle Flash (service only)

Possible Points: 50

Five (5) rounds of each **Service** submission will be fired from a Glock 19M Gen5 MOS in a darkened indoor range. The muzzle flash will be recorded using high-speed video.⁴¹ These five (5) videos represent the muzzle flash from the sample service ammunition.

Five (5) rounds of the FBI's current **Service**⁴² ammunition will be fired from the same test weapon in a darkened indoor range. The muzzle flash will be recorded using high-speed video. These five (5) videos represent the muzzle flash from the FBI's current service ammunition.

The five (5) videos from the sample service ammunition will be compared to the five (5) videos from the FBI's current service ammunition.

Points will be assigned based on the following table:

⁴¹ Phantom v7510 high speed camera, or similar. Vision Research, 100 Del Rd., Wayne, NJ 07470, tel. (973) 696-4500, www.phantomhighspeed.com

⁴² The FBI's current Service ammunition is Hornady 135 grain Critical Duty (product # 90125).

Muzzle Flash compared to Current FBI Service	Points
Less than	50
Equal to	25
Greater than	0

9. Sustained Immersion in Water (service only)

(Pass/Fail)

Twenty (20) rounds of each **Service** submission will be immersed to a depth of 24" in a container of tap water at room temperature for a minimum of 8 hours, not to exceed 12 hours.⁴³

Once removed from the water, the ammunition will be lightly dried with a clean towel or rag, then loaded into a magazine and an attempt will be made to fire all cartridges. A Glock 19M Gen5 MOS⁴⁴ will be used for this assessment.

The velocity of each of the twenty (20) test shots will be recorded using a ballistic chronograph. The average velocity of the twenty (20) rounds will be calculated. This is the sample's "Average Velocity - Wet."

The average velocity for the sample, previously calculated in Phase II, Factor 5 – Power Factor, will be the "Average Velocity – Dry."

The sample ammunition shall meet the following standards:

- A. The Average Velocity – Wet must be within **50 fps** (+/-) of the Average Velocity - Dry.
- B. Each of the immersed twenty (20) rounds must function the weapon as designed.

A failure to meet both standards will result in a failure, and the submission will be eliminated from further consideration.

10. Cleanliness - Cartridge and Test Barrel (all categories)

Possible Points: 40

Cleanliness of Cartridges: The cleanliness of the unfired ammunition will be evaluated. Twenty (20) rounds will be selected for this evaluation. The rounds will be wiped with a new, clean white cloth. The cloth will be examined for discoloration, staining, foreign debris or irregularities. Points will be assigned based on the following table:

Cartridge	Points
Clean Cartridges	20
Minor Irregularities	10
Moderate Irregularities	5
Major Irregularities	0

⁴³ All evaluated submissions will be submerged for an equal period of time (+/- one minute).

⁴⁴ The test weapon will be the same test weapon used in Factor 5 – Power Factor.

Cleanliness of Test Barrel: The cleanliness of the test barrel will be examined for residual fouling after sample ammunition is fired. Starting with a clean test barrel, twenty (20) rounds of sample ammunition will be fired. A new cleaning patch will be pushed through the chamber and barrel. The cleaning patch will be examined for discoloration, staining, foreign debris or irregularities. Points will be assigned based on the following table:

Weapon Fouling	Points
Little/No Fouling	20
Satisfactory (Some)	10
Moderate Fouling	5
Heavy Fouling	0

11. Frangibility (frangible only)

Total Possible: 500

A plate of AR500 steel with a nominal thickness of 3/8" will be utilized for this assessment. The steel plate will be secured in a fixture and checked to ensure that it is plumb (90-degree vertical and squared to the test weapon). A corrugated cardboard witness panel measuring 0.1" thick will be placed 9" in front of the steel plate. The cardboard witness panel material is EC2, single flute, double wall construction.

Twenty (20) rounds of each sample will be fired through the witness panel and into the steel from a distance of 10 feet. The angle of impact will be approximately zero-degrees obliquity. The rounds will be fired from a test barrel.⁴⁵ The impacts from the test rounds will be as close to the same point as possible.

The projectile being tested should minimize fragments which splash back and perforate the cardboard witness panel. A perforation is defined as a full penetration through the witness panel. Indentations or partial penetration of the witness panel is not counted against the Offeror. Perforations will be counted, and points assigned based on the following table:

Perforations	Points
0	250
1	125
2	75
3	25
≥ 4	0

After the twenty (20) rounds have been fired, the dimpling of the steel will be measured. Points are assigned based on the depth of the dimpling. If the steel plate is perforated, the submission will be eliminated from further consideration. Points will be assigned based on the following table:

⁴⁵ The test barrel is a 4" heavy barrel, 1.25" diameter, SAAMI 9mm Luger chamber and a 1:10 twist rate.

Dimpling (in.)	Points
≤ 0.010	250
0.011 – 0.015	125
0.016 – 0.020	75
0.021 – 0.025	50
≥ 0.026	0
Perforation	eliminated

12. Ammunition Malfunctions (all categories)

Total Possible: 60

During Phase II evaluations, all ammunition malfunctions will be documented. For each ammunition submission, the number of malfunction incidents occurring during Phase II will be assigned a corresponding point value according to the table below:

Malfunctions	Points
0	60
1	30
≥ 2	0

Ammunition-related malfunctions include, but are not limited to:

- a. Failure to feed
- b. Failure to chamber
- c. Failure to lock
- d. Failure to fire⁴⁶
- e. Failure to unlock
- f. Failure to extract
- g. Failure to eject
- h. Failure to cock
- i. Squib load
- j. Blown primer (excluding weapon induced failures)
- k. Excessive bullet yaw
- l. Hangfire
- m. Ruptured or cracked case

Malfunctions induced by the shooter, or those which are caused by a weapon failure or defect, or those that have an indeterminate cause shall not constitute an "ammunition related malfunction" for purposes of this evaluation.

13. Ammunition Defects (all categories)

Total Possible: 50

Throughout Phase II evaluations, all ammunition defects observed will be documented.

The number of ammunition defects observed per sample will be totaled and assigned a

⁴⁶ Cartridges with a firing pin indentation depth of 0.013" or greater, which do not fire, will be considered a failure of the ammunition.

respective point value. Points will be assigned based on the following table:

Ammunition Defects Observed	Points
0	50
1	25
≥ 2	0

Ammunition-related defects include, but are not limited to the following:

- a. Deformed case
- b. Inverted primer or bullet
- c. Inert or defective primer
- d. Inconsistent bullet seating depth
- e. Inconsistent powder charge
- f. Excessive primer or bullet sealant
- g. Case not within SAAMI specifications
- h. Insufficient neck tension
- i. Split case
- j. Incorrect projectile

[illegible]

(End Phase II Evaluations)

For each submission, the points earned across all Phase II evaluations will be combined for a total Phase II score. Total possible Phase II points based on each ammunition category are shown below:

Factor	Service	Training	Frangible
1. Terminal Performance (service only)	500	n/a	n/a
2. Accuracy, Glock Barrel (all categories)	150	150	150
3. Accuracy, Test Barrel (all categories)	50	50	50
4. Instrumental Velocity (all categories)	80	80	80
5. Power Factor (all categories)	Pass / Fail	Pass / Fail	Pass / Fail
6. SAAMI Pressure (all categories)	Pass / Fail	Pass / Fail	Pass / Fail
7. Environmental Pressure (all categories)	Pass / Fail	Pass / Fail	Pass / Fail
8. Muzzle Flash (service only)	50	n/a	n/a
9. Sustained Immersion in Water (service only)	Pass / Fail	n/a	n/a
10. Cleanliness (all categories)	40	40	40
11. Frangibility (frangible only)	n/a	n/a	500
12. Ammunition Malfunctions (all categories)	60	60	60
13. Ammunition Defects (all categories)	50	50	50
Possible Phase II Points	980	430	930

[illegible]

At the conclusion of Phase II evaluations, the top two scoring submissions in each of the three

(3) ammunition categories (Service, Training, Frangible) will advance to Phase III. This process is in the best interest of the Government

Offerors advancing to Phase III evaluation will receive written notification from the Contracting Officer. For **Service** and **Training**, the Offeror will be required to submit an additional 10,000 rounds. For **Frangible** ammunition, the Offeror will be required to submit an additional 5,000 rounds. The additional samples needed for Phase III evaluations shall be delivered to the FBI within 10 calendar days of notification.

If during any portion of Phase III evaluations a sample submission is eliminated, the Government reserves the right to include the next highest scoring submission, from Phase II testing, into Phase III testing. The Government is not required to include the next highest scoring submission. If a determination is made to include another submission, the Contracting Officer will notify the Offeror and request the additional rounds be delivered to the FBI within 10 calendar days of notification of selection.

Samples shall be delivered to:

FEDERAL BUREAU OF INVESTIGATION
BALLISTIC RESEARCH FACILITY
ATTN: PATRICK M. BOONE
4942 FOWLER ROAD
BUILDING #6315
REDSTONE ARSENAL, AL 35898
RFP-15F06726R0000146

M.3.6 PHASE III

A. Body Armor Penetration

(Pass/Fail)

One (1) round from each submission will be fired into the FBI's current issue low-visibility body armor⁴⁷ using a Glock 17M Gen5 MOS. A panel of the body armor will be secured to a validated block of ballistic gelatin with the muzzle of the weapon touching the body armor such that the bullet impact is approximately 90-degrees to the armor. The impact location on the panel shall not be within 2 inches of any outer edge and not within 3" from any previous test impact.

If the projectile fails to perforate the armor panel, the submission will have passed this assessment and will advance.

If the projectile or any portion of the projectile perforates⁴⁸ the armor panel, a new armor panel will be secured to a new block of validated ballistic gelatin. Five (5) additional test

⁴⁷ Hardwire model HW-2019-05-SB soft armor.

⁴⁸ For the purposes of ballistic resistance testing within this RFP evaluation, a perforation is defined as the result of a sample projectile impact on the armor panel if any of the following conditions are met: (1) The sample projectile or any portion of the projectile has passed through all layers of the armor panel (e.g., a hole is created through the armor

shots will be taken.⁴⁹ If any of the five (5) test shots perforate the armor panel, the submission will have failed, and the sample will be eliminated from further consideration.

B. Functional Reliability

Possible Points: 50

The FBI has established minimum reliability standards.⁵⁰ A submission that fails to meet the minimum reliability standards will be disqualified from further consideration. Samples that meet or surpass the minimum standard for stoppages attributed to ammunition failures will be awarded points.

Submissions of **Service** and **Training** ammunition will be fired for 10,000 rounds. Submissions of **Frangible** ammunition will be fired for 5,000 rounds.

The firearms used in reliability testing will be a sampling of DOJ-fielded firearms.⁵¹

All live-fire shooting will be performed by shooters selected by the FBI.

Functional reliability testing will commence with an inspected, cleaned, and lubricated firearm. Throughout testing, firearms will be cleaned at least every 250 rounds. All stoppages will be inspected and attributed to one of the following factors: shooter-induced, weapon related, ammunition failure, or undetermined.

Stoppages attributed ammunition failure

Stoppages attributed to an ammunition failure⁵² will be counted against the Offeror for the minimum reliability standard.

Points will be assigned based on the number of stoppages attributed to ammunition failures. See the tables below for points based on the category of ammunition.

panel). (2) The sample projectile or any portion of the projectile is protruding through the wear face of the armor panel. (3) The sample projectile or any portion of the projectile is embedded in or passed through the gelatin backer.

⁴⁹ Each test impact shall be no closer than 2" from any previous test impact.

⁵⁰ See Section C.5.2 and Section C.5.3 of the Statement of Work for reliability standards.

⁵¹ Section C.5.1 lists firearms in use within the DOJ. The Government reserves the right to use any firearm make/model listed in C.5.1. Any make/model firearm utilized in reliability testing will be utilized for all ammunition samples within that category.

⁵² Ammunition failures include ammunition malfunctions and ammunition defects, as defined in Phase II, Factor 12 and Phase II, Factor 13. In addition, as documented in Section C.5.2, ammunition failures include ammunition defects and failures that occur at any point in the cycle of operation, which can be attributed to the ammunition. Ammunition failures include, but are not limited to the following: deformed case, inverted primer or bullet, inert or defective primer (firing pin indentation depth of 0.013" or greater, which do not fire), squib load, inconsistent bullet seating depth, inconsistent powder charge, ammunition that leaves an excessive residue build up in the weapon, excessive primer or bullet sealant (i.e., capable of causing fouling), cartridge not within recommended specifications of the SAAMI, blown primer (excluding those caused by something other than ammunition), and incorrect ammunition.

Service:

Stoppages Attributed to Ammunition Failures	Points
0	50
1	35
2	Eliminated

Training:

Stoppages Attributed to Ammunition Failures	Points
0	50
1	35
2	15
3	5
4	0
≥5	Eliminated

Frangible:

Stoppages Attributed to Ammunition Failures	Points
0	50
1	35
2	20
3	10
4	5
5	0
≥ 6	Eliminated

Any submission which fails to meet the minimum reliability standard will be eliminated from further consideration.

Undetermined Stoppages

A high number of undetermined stoppages⁵³ may be indicative of a firearm / ammunition compatibility issue. The functional reliability of the weapon system (e.g., the firearm, ammunition, and shooter) is paramount for law enforcement personnel to survive a deadly force encounter. As such, a high number of undetermined stoppages is problematic for the Government.

For **Service** and **Training** ammunition submissions, no more than one undetermined stoppage for every 2,000 rounds fired is allowed. For **Frangible** ammunition submissions, no more than one undetermined stoppage for every 1,000 rounds fired is allowed.

⁵³ Undetermined stoppages are those that are not causally determined as shooter-induced, weapon related, or as an ammunition failure.

Service, Training and Frangible:

Undetermined Stoppages	Result
0 - 5	Pass
≥ 6	Eliminated

(End Phase III Evaluations)

[illegible]

The Phase II overall point total shall be added to points received during Phase III for a combined final technical score.

Total points possible through the end of Phase III are as follows:

Possible Points	Service	Training	Frangible
Phase II	980	430	930
Phase III	50	50	50
Total Possible	1,030	480	980

END TECHNICAL EVALUATION

[illegible]

The results of the Technical Evaluation will be provided to the Contracting Officer. Thereafter, the Government will review the Technical Evaluation, Past Performance, and Price to determine which submission demonstrates best value to the Government.

[illegible]